

PERFORMANCE WORK STATEMENT

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Service Craft Operations and Maintenance at Naval Diving and Salvage Training Center

PART 1

GENERAL INFORMATION

1. General. This is a non-personal services contract to provide service craft operations and maintenance support. The Government will not exercise any supervision or control over the contract service providers performing the services herein. Such contract service providers shall be accountable solely to the Contractor who, in turn is responsible to the Government.

1.1. Description of Services/Introduction. The Contractor shall provide all personnel, labor, equipment, supplies, facilities, transportation, tools, materials, supervision, and other items and non-personal services necessary to perform service craft operations and maintenance support at Naval Diving and Salvage Training Center (NDSTC), Naval Support Activity Panama City (NSA PC), FL as defined in this Performance Work Statement (PWS) except for those items specified as Government furnished property and services. The Contractor shall perform to the standards in this PWS and subsequent contract. A REPAIR PARTS CLIN will be utilized for REPAIR PARTS / TOOLS outside vessel preventative maintenance schedule and for Industrial Assistance as approved by the Contracting Officer Representative (COR).

1.2. Background. The Center for Explosive Ordnance Disposal and Diving (CENEODDIVE) is the Immediate Superior in Command of Naval Diving and Salvage Training Center (NDSTC). CENEODDIVE is located on Naval Support Activity Panama City (NSA PC) and provides oversight and control of Explosive Ordnance Disposal (EOD) training and joint-service dive training taught at NDSTC. NDSTC trains approximately 1,500 students annually and requires contractor support services to assist staff and instructors at NDSTC with the daily logistical support needed to maintain a ready-to-train status. NDSTC provides training for military and civilian personnel, from all branches of the armed forces, other Government agencies and foreign military in diving, ocean recovery, diving medicine, and underwater explosive work. In addition, NDSTC provides training in salvage and deep-sea recovery. NDSTC has used Contractor Support Services since 2006 to accomplish their mission and continue to require Contractor Support Services for vessel operation and maintenance, port operations and waterfront administration.

1.3. Objectives. The objective of this contract is to provide services for the maintenance and operation of multiple service craft, watercraft, boats, wave runners, trailers, and NDSTC salvage equipment to include salvage related tools and yellow gear. In addition, the Contractor shall manage port operations and waterfront administration in support of NDSTC.

1.4. Scope. This contract includes all functions, tasks and responsibilities normally performed by a Program Manager; 200 Gross Register Tons (GRT) and 25 GRT Masters; Duty and Apprentice Engineers; Able Seaman; Ordinary Seaman; Small Boat Coxswains; and Outboard Mechanics. The Contractor shall be responsible for providing a sufficient number of experienced and

qualified employees to safely operate the various craft identified by this contract while meeting all USCG requirements and not restricting operational and maintenance requirements identified herein. The Contractor shall perform scheduled and unscheduled maintenance and repairs simultaneously to the craft, small boats, jet skis, trailers, salvage equipment, and training projects to ensure mission readiness on a 24-hour a day basis. The Contractor shall comply with all applicable laws, regulations, including but not limited to Federal Law, Florida State Law(s), Occupational Safety, Health Administration (OSHA) regulations, Navy, and installation regulations.

1.5. Hours of Operation.

1.5.1. Normal Duty Hours. The Contractor is responsible for providing performance/service, between the hours of 0600-1630 (core hours vary slightly from task to task), Monday through Friday. A typical workday is eight hours except for Yard Diving Tender (YDT) underway training evolutions and US Marine Corps (USMC) and US Air Force (USAF) nighttime training evolutions, which will not exceed 12 hours. The two week pay period will not exceed 80 hours, nor is overtime or shift differential pay authorized. The Contractor shall develop personnel work schedules according to the task's requirements. For training evolutions that exceed the standard eight-hour workday, the contractor will adjust work hours for the other days of the week to achieve no more than an 80-hour two-week pay period. If operational commitments require changes to the typical work schedule, the COR will coordinate with the Contracting Officer for approval, except on Federal holidays or when the Government facility is closed due to local or national emergencies, administrative closings, or similar Government directed facility closings. The Contractor must at all times maintain an adequate workforce for the uninterrupted performance of all tasks defined within this PWS when the Government facility is not closed for the above reasons.

1.5.2. Federal Government Holidays.

a. New Year's Day	1st day of January
Martin Luther King Jr.'s Birthday	3rd Monday of January
Washington's Birthday	3rd Monday of February
Memorial Day	Last Monday of May
Juneteenth	19 th day of June
Independence Day	4th day of July
Labor Day	1st Monday of September
Columbus Day	2nd Monday of October
Veterans Day	11th day of November
Thanksgiving Day	4th Thursday of November
Christmas Day	25th day of December

b. When one of the above designated legal holidays falls on a Sunday, the following Monday will be observed as a legal holiday. When a legal holiday falls on a Saturday, the proceeding Friday is observed as a legal holiday. This list of holidays relates to Government duty days and is not intended to supplement or otherwise alter the provisions of any Wage Determination regarding applicable paid holidays.

c. When the Department of Defense grants excused absence to its employees, the Contractor agrees to continue to provide sufficient personnel to perform critical tasks already in operation or scheduled, and shall be guided by the instructions issued by the Contracting Officer (KO) or the Contracting Officer's Representative (COR). Changes in employee work schedules shall comply with the terms and conditions of the contract, to include payment provisions.

d. If Government personnel are furloughed, the Contractor shall contact the KO or the COR to receive direction. It is the Government's decision as to whether the contract price/cost will be affected because of Government shutdown and/or furloughed Government employees. It is expected that the Contractor will continue normal daily operations with the active duty personnel. In the event of a Government shutdown or furloughed Government employee(s) impacting contract price/cost, a negotiated settlement will be reached as deemed appropriate by the KO.

e. NDSTC has a holiday stand-down period of approximately two weeks from late December through early January. The Contractor support during the stand-down period to accomplish scheduled and unscheduled preventive maintenance is common.

1.5.3. Stop Work Order. In cases of inclement weather, natural disasters, command operational work impacts, and other command directions the KO may authorize exceptions to the normal duty hours. The Contractor shall develop and implement an Inclement Weather and Work Contingency Plan. When exceptions are granted due to inclement weather, the Contractor shall make up all missed services within 24 hours after the severe weather has terminated, unless the KO authorizes additional time. The Contractor shall not use rescheduling to provide make-up services shall as a basis for a claim for additional compensation.

1.5.3.1. Inclement Weather Operations. The Contractor shall have an Inclement Weather and Work Contingency Plan (CDRL A001). Both plans shall be made available to the COR and Contracting Officer within five calendar days after contract award. If the Commanding Officer, Florida Governor, and/or other Government officials issue a mandatory evacuation order, it shall serve as the official notice/order to stop work and evacuate. The COR shall notify the Contracting Officer of the Stop Work Order within 24 hours of the mandatory evacuation. The KO will follow-up with a letter stating the date and time of when the mandatory evacuation was ordered and notification of the return to work. The Commanding Officer will issue the return to work orders in the event of command closure.

1.5.3.1.a. The plan will incorporate and comply with NDSTC Destructive Weather Preparation instructions policy and guidance and will address contractors by name and their assigned actions in relocating port services equipment and assigned watercraft and vehicles to a secure storage or mooring areas, and removing, securing and properly stowing all non-essential loose gear in waterfront areas. In addition, the plan will include proposed procedural modifications to NDSTC instruction and any required Government assistance. TE-7 contains the NDSTC Destructive Weather instruction.

1.5.3.1.b. The Contractors will assist with post-storm assessments of damage to pier facilities, assorted watercraft and assigned buildings.

1.5.3.1.c. If additional work is required due to severe weather, the contractor shall submit a work package request with supporting cost documentation to the COR and Contracting Officer for consideration and approval.

1.6. Place of Performance. The work to be performed under this contract will be performed at the following location:

Naval Diving Salvage Training Center
350 South Crag Road
Panama City, FL 32407

1.7. Quality Control. Quality Control is the responsibility of the Contractor. The Contractor is responsible for the delivery of quality services to the Government in accordance with (IAW) the terms and conditions of the contract.

1.7.1. The Contractor shall develop, implement and maintain an effective Quality Control System which includes a written Quality Control Plan (QCP) (CDRL A002). The QCP shall implement a standardized procedure/methodology for monitoring and documenting contract performance to ensure all contract requirements are met. The QCP must contain a systematic approach to monitor operations to ensure acceptable services are provided to the Government. The QCP, at a minimum, shall address continuous process improvement; procedures for scheduling, conducting, and documenting inspections; discrepancy identification and correction; corrective action procedures to include procedures for communicating and addressing Government discovered non-conformances; procedures for root cause analysis, and root cause corrective action to prevent re-occurrence of discrepancies; procedures for trend analysis; and procedures for collecting and addressing customer feedback/complaints. Changes to the QCP after award shall be submitted to the KO and COR in an electronic copy within five calendar days prior to the proposed changes thereafter. After acceptance of the QCP, the Contractor shall request the Contracting Officer's acceptance in writing of any proposed change to their Quality Control System in regard to this contract.

1.7.2. Corrective Actions. If the Government determines that the quality control system, personnel, instructions, controls, tests, or records are not providing results which conform to contract requirements, the Contractor shall take appropriate corrective action(s) to correct the deficiency(s). If a Contract Deficiency Report (CDR) is issued, the Contractor shall develop the following: a Corrective Action Plan (CDRL A003), which identifies the root cause, Corrective Action (CA) for the root cause, CA for the specific non-conformance, CA to the root cause to prevent recurrence, and a corrective action including the timeline for completion.

1.8. Quality Assurance. The Government will evaluate the Contractor's performance under this contract IAW the Quality Assurance Surveillance Plan (QASP). This plan is a Government-only document primarily focused on what the Government must do to ensure that the Contractor has performed IAW the requirements of the contract. It defines how the performance standards will

be applied, the frequency of surveillance, and the minimum acceptable deficiency rate(s) as illustrated within the PWS and Performance Requirements Summary. All performance ratings will be used (Exceptional, Very Good, Satisfactory, Marginal, or Unsatisfactory), as defined in FAR subpart 42.15, *Contractor Performance Information*. The Government reserves the right to conduct compliance surveillance of all contractual requirements of this acquisition.

1.8.1. Contracting Officer's Representative (COR). The COR will be nominated by the KO. The COR monitors all technical aspects of the task order and assists in contract administration.

The COR is authorized to perform the following functions:

- Ensure that the Contractor performs the technical requirements of the contract.
- Perform inspections necessary in connection with contract performance.
- Maintain written and oral communications with the Contractor concerning technical aspects of the contract.
- Monitor Contractor's performance and notify both the KO and Contractor of any deficiencies.
- Coordinate availability of Government equipment furnished.
- Provide site entry of Contractor personnel.

The KO will issue a COR Designation Letter, a copy of which is sent to the Contractor, which states the responsibilities and limitations of the COR, especially with regard to changes in cost or price, estimates or changes in delivery dates. The COR is not authorized to change any of the terms and conditions of the resulting order. Only the KO is authorized to make changes to the terms and conditions of the contract.

1.8.2. Post Award Conference/Periodic Progress Meetings. The Contractor agrees to attend any post award conference convened by the Government IAW FAR Subpart 42.5, Post Award Orientation. The KO, COR, and other Government personnel, as appropriate, may meet periodically with the Contractor to review the Contractor's performance. At these meetings, the KO will apprise the Contractor of how the Government views the Contractor's performance and the Contractor will apprise the Government of problems, if any, being experienced. The Contractor shall not wait for these meetings to relay important/time sensitive information. Appropriate action shall be taken to resolve outstanding issues. The Contractor shall include the cost of these meetings into their overall contract price.

1.9. Antiterrorism (AT) and Operations Security (OPSEC) Security.

1.9.1. AT Level I Awareness Training. All Contractor employees, including subcontractor employees (collectively known herein as "Contract Employees"), requiring access to Navy installations, facilities, or controlled access areas, shall complete Antiterrorism Level I Awareness Training within five calendar days after contract start date, or the effective start date for new Contract Employee, whichever applies. AT Level I Awareness Training is available at the following site: <https://atlevel1.dtic.mil/at>. The Contractor shall ensure Contract Employees take the training online. The Contractor shall present training certificates to the COR with their

SAAR-N within three calendar days after completion (CDRL A004). AT Level I Awareness Training is an annual requirement with a 12-month period starting on the Contract Employee's start date and re-certification no later than (NLT) the last day of the 12-month period.

1.9.2. Access and General Protection/Security: Policy and Procedures. The Contractor Employees shall comply with applicable installation, facility and area commander installation/facility access and local security policies and procedures (provided by Government representative). The Contractor shall also provide all information required for background checks to meet installation access requirements to be accomplished by installation Provost Marshal Office, Director of Emergency Services or Security Office. The Contractor workforce must comply with all personal identity verification requirements as directed by DoD, Department of the Navy (DoN) and/or local policy. In addition to the changes otherwise authorized by the changes clause of this contract, should the Force Protection Condition at any individual facility or installation change, the Government may require changes in Contractor security matters or processes.

1.9.3. Defense Biometric Identification System (DBIDS). The DBIDS is a DoW-owned and operated system developed by Defense Manpower Data Center as a force protection program to manage personnel identity and access at DoW installations. DBIDS is a network database system designed to easily verify access authorization of personnel entering military installations by using barcodes and fingerprint biometric identifications.

To obtain base access, an individual needs to acquire DoW sponsorship, have a thorough identity check, be properly vetted, and have a legitimate reason for base access. Identity checks require a passport or a Real ID Act-compliant state driver's license. Vetting occurs when the individual's background and ID are compared against authoritative criminal justice databases, and the individual has a letter or official document from the sponsoring organization which articulates the reason for access. When the above criteria are satisfactorily met, DBIDs credentials are issued.

Additional information is available at <https://www.cnmc.navy.mil/om/dbids.html>.

1.9.4. Contractor Unclassified Access to Federally Controlled Facilities, Sensitive Information, IT Systems or Protected Health Information. Homeland Security Presidential Directive (HSPD)-12, requires Government agencies to develop and implement Federal security standards for Federal employees and Contractors. The Deputy Secretary of Defense Directive-Type Memorandum (DTM) 08-006 – “DoW Implementation of HSPD-12” dated November 26, 2008 (or its subsequent DoW instruction) directs implementation of HSPD-12. This clause is in accordance with HSPD-12 and its implementing directives.

APPLICABILITY

This clause applies to Contract Employees requiring physical access to any area of a federally controlled base, facility, or activity and/or requiring access to a DoN or DoW computer/network/system to perform certain unclassified sensitive duties. This clause also applies to Contract Employees who access Privacy Act and Protected Health Information, provide support associated with fiduciary duties, or perform duties that have been identified as

National Security Position, as advised by the command security manager. It is the responsibility of the security officer of the command/facility where the work is performed to ensure compliance.

Each Contract Employee providing services at a Navy Command under this contract is required to obtain a DoW Common Access Card (CAC). Additionally, depending on the level of computer/network access, the contract employee will require a successful investigation as detailed below.

ACCESS TO FEDERAL FACILITIES

Per HSPD-12 and implementing guidance, all Contractor employees working at a federally controlled base, facility or activity under this clause will require a DoW CAC. When access to a base, facility or activity is required Contract Employees shall in-process with the Command's Security Manager upon arrival to the Command and shall out-process prior to their departure at the completion of the individual's performance under the contract.

ACCESS TO DOD IT SYSTEMS

In accordance with SECNAVINST 5510.30, Contract Employees who require access to DoN or DoW networks are categorized as IT-I, IT-II, or IT-III. The IT-II level, defined in detail in SECNAVINST 5510.30, includes positions which require access to information protected under the Privacy Act, to include Protected Health Information. All Contract Employees under this contract who require access to Privacy Act protected information are therefore categorized no lower than IT-II. IT Levels are determined by the requiring activity's Command Information Assurance Manager.

Contract Employees requiring privileged or IT-I level access, (when specified by the terms of the contract) require a Single Scope Background Investigation (SSBI) or T5 or T5R equivalent investigation, which is a higher level investigation than the T3/T3R described below. Due to the privileged system access, an investigation suitable for High-Risk national security positions are required. Individuals who have access to system control, monitoring, or administration functions (e.g. system administrator, database administrator) require training and certification to Information Assurance Technical Level 1 and must be trained and certified on the Operating System or Computing Environment they are required to maintain.

Access to sensitive IT systems is contingent upon a favorably adjudicated background investigation. When access to IT systems is required for performance of the Contract Employee's duties, such contract employees shall in-process with the Navy Command's Security Manager and Information Assurance Manager upon arrival to the Navy command and shall out-process prior to their departure at the completion of the individual's performance under the contract. Completion and approval of a System Authorization Access Request Navy (SAAR-N) form is required for all Contract Employees accessing Navy Information Technology resources. The decision to authorize access to a Government IT system/network is inherently Governmental. The Contractor supervisor is not authorized to sign the SAAR-N; therefore, the Government employee with knowledge of the system/network access required or the COR shall sign the SAAR-N as the "supervisor".

The COR shall forward the SAAR-N (CDRL A005) no later than five days after the individual's start date. Failure to provide the required documentation may result in delaying the individual's start date.

When required to maintain access to required IT systems or networks, the Contractor shall ensure that all Contract Employees requiring access complete annual Information Assurance (IA) training and maintain a current requisite background investigation. The Contractor's Security Representative shall contact the Command Security Manager for guidance when reinvestigations are required.

INTERIM ACCESS

The Command's Security Manager may authorize issuance of a DoW CAC and interim access to a DoN or DoW unclassified computer/network upon a favorable review of the investigative questionnaire and advance favorable fingerprint results. When the results of the investigation are received and a favorable determination is not made, the Contractor employee working on the contract under interim access will be denied access to the computer network and the Contractor shall not be relieved of the responsibility to perform.

DENIAL OR TERMINATION OF ACCESS

The potential consequences of any requirement under this clause including denial or termination of physical or system access in no way relieves the Contractor from the requirement to execute performance under the contract within the timeframes specified in the contract. Contractor shall plan ahead in processing Contract Employees. The Contractor shall insert this clause in all subcontracts when the subcontractor is permitted to have unclassified access to a federally controlled facility, federally controlled information system/network and/or to Government information, meaning information not authorized for public release.

CONTRACTOR'S SECURITY REPRESENTATIVE

The Contractor shall designate an employee to serve as the Contractor's Security Representative. Within three workdays after contract award, the Contractor shall provide to the requiring activity's Security Manager and the Contracting Officer, in writing, the name, title, address and phone number for the Contractor's Security Representative (CDRL A006). The Contractor's Security Representative shall be the primary point of contact on any security matter. The Contractor's Security Representative shall not be replaced or removed without prior notice to the Contracting Officer and Command Security Manager.

BACKGROUND INVESTIGATION REQUIREMENTS AND SECURITY APPROVAL PROCESS FOR CONTRACTORS ASSIGNED TO NATIONAL SECURITY POSITIONS OR PERFORMING SENSITIVE DUTIES

Navy security policy requires that all positions be given a sensitivity value based on level of risk factors to ensure appropriate protective measures are applied. Contract Employees under this contract are recognized as Non-Critical Sensitive [ADP/IT-II] positions when the contract scope of work requires physical access to a federally controlled base, facility or activity, and/or access to a DoD computer/network, to perform unclassified sensitive duties. This designation is also applied to Contract Employees who access Privacy Act and Protected Health Information, provide support associated with fiduciary duties, or perform duties that have been identified as

National Security Positions. At a minimum, each Contract Employee must be a U.S. citizen and have a favorably completed T3 or T3R equivalent investigation to obtain a favorable determination for assignment to a non-critical sensitive or IT-II position. The investigation consists of a standard NAC and an FBI fingerprint check plus law enforcement checks and credit checks. Each Contract Employee filling a non-critical sensitive or IT-II position is required to complete:

- SF-86 Questionnaire for National Security Positions (or equivalent OPM investigative product)
- Electronic Fingerprint submission (or two FD-258 Applicant Fingerprint Cards)
- Original Signed Release Statements

Failure to provide the required documentation as listed above may result in delaying the individual's start date. Background investigations shall be reinitiated as required to ensure investigations remain current (not older than 10 years) throughout the contract performance period. The Contractor's Security Representative shall contact the Command Security Manager for guidance when reinvestigations are required.

Regardless of their duties or IT access requirements, ALL Contract Employees shall in-process with the Command's Security Manager upon arrival to the command and shall out-process prior to their departure at the completion of performance under the contract. Contract Employees requiring IT access shall also check-in and check-out with the Navy Command's Information Assurance Manager. Completion and approval of a SAAR-N form, and mandatory training is required for all individuals accessing Navy Information Technology resources. The Contractor shall forward the SAAR-N and AT Level 1 Awareness Training certificate of completion to the COR at least 5 calendar days after the contract start date, and for new hires their performance start date. Failure to provide the required documentation on time may result in delaying the individual's network access date.

The Contractor shall ensure that each Contract Employee requiring access to IT systems or networks complete annual Information Assurance (IA) training and maintain a current requisite background investigation. Contract Employees shall accurately complete the required investigative forms prior to submission to the Command Security Manager. The Command's Security Manager will review the submitted documentation for completeness prior to submitting it to the Office of Personnel Management (OPM). Potential suitability or security issues identified may render the Contract Employee ineligible for the assignment. An unfavorable determination is final (subject to SF-86 appeal procedures), and such a determination does not relieve the Contractor from meeting any contractual obligation under the contract. The Command's Security Manager will forward the required forms to OPM for processing. Once the investigation is complete, the results will be forwarded by OPM to the DoW Central Adjudication Facility (CAF) for a determination.

If the Contract Employee already possesses a current favorably adjudicated investigation, the Contractor shall submit a Visit Authorization Request (VAR) via the Defense Information System for Security (DISS) or a hard copy VAR directly from the Contractor's Security Representative. Although the Contractor will take DISS "Owning" role over the Contractor

employee, the Navy Command will take DISS "Servicing" role over the Contractor employee during the hiring process and for the duration of assignment under that contract. The Contractor shall include the IT Position Category per SECNAVINST 5510.30 for each employee designated on a VAR. The VAR requires annual renewal for the duration of the employee's performance under the contract.

Work under this contract is Controlled Unclassified Information (CUI) for Contractor Employees at NDSTC. In addition, the work at all commands requires access to Government facilities, DoN unclassified information systems, sensitive unclassified information, and the issuance of a CAC. Per SECNAVINST 5510.30C, all positions for this work are categorized as Noncritical Sensitive and require a favorably adjudicated Tier 3 (T3) background investigation.

1.10. Security.

1.10.1. Security Requirements. All Contract Employees performing work under this contract must have an IT-II level access at time of the proposal submission and must maintain the level of security required for the life of the contract. The security requirements are IAW NISP Contract Classification System (NCCS) <https://tesseract.cloud.dcsa.mil/nccs/> .

1.10.1.1. The Government will issue a CAC or DBIDS card to Contract Employees. The Contractor shall provide the required information requested by the COR for CAC issuance (CDRL A007). The CAC contains a client-site certificate that is necessary to access the Navy Marine Corps Intranet (NMCI) computers and perform various functions and access systems and information. The CAC/DBIDS also serves as identification for base access.

1.10.2. Physical Security. The Contractor shall be responsible for safeguarding all Government equipment, information and property provided for Contractor use IAW OPNAVINST 5530.14E CH-3, Navy Physical Security and Law Enforcement Program. Contractor shall maintain a physical security checklist/log which will be forwarded to the COR monthly (CDRL A008). At the close of each work period, Government facilities, equipment and materials shall be secured.

1.10.3. Key Control. The Contractor shall establish and implement methods of making sure all keys/key cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. NOTE: All references to keys include key cards. No keys issued to the Contractor by the Government shall be duplicated. The Contractor shall develop and implement a key control program and procedures compliant with OPNAVINST 5530.14E CH-3 to ensure that keys are controlled and safeguarded. The plan shall be incorporated within the QCP. Such procedures shall include turn-in of any issued keys by personnel who no longer require access to locked areas. The Contractor shall immediately report any occurrences of lost or duplicate keys/key cards to the KO, COR, and Security Manager.

- a. In the event keys, other than master keys, are lost or duplicated, the Contractor shall, upon direction of the KO, re-key or replace the affected lock or locks; however, the Government, at its option, may replace the affected lock or locks or perform re-keying. When the replacement of locks or re-keying is performed by the Government, the total cost of re-keying or the replacement of the lock or locks shall be deducted from the

monthly payment due the Contractor. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly payment due the Contractor. The Contractor shall reimburse the Government for any property stolen or damaged in association with keys being duplicated, misplaced, or lost by the Contractor personnel.

- b. The Contractor shall prohibit the use of Government issued keys/key cards by any persons other than Contractor's Employees. The Contractor shall prohibit the opening of locked areas by Contract Employees to permit entrance of persons other than Contractor employees engaged in the performance of assigned work in those areas, or personnel authorized entrance by the KO.

1.10.4. Security of Classified Items, Systems and Information (For NDSTC Contractors). The Contractor shall not access, view, possess, or use classified information under this contract. The Contractor shall immediately contact the COR for instructions if access to classified information becomes necessary or if the Contractor falls into the possession of classified information while performing services under this contract.

1.10.5. Personally Identifiable Information (PII). Work under this contract requires access to PII and information protected by the Privacy Act of 1974. PII Training is required initially, then annual prior to accessing information systems. At a minimum, the Contractor shall meet eligibility requirements for a position of trust. The Contractor shall comply with all applicable DoW security regulations and procedures during the performance of this contract. Contractor personnel shall not disclose and must safeguard procurement sensitive information, computer systems and data, privacy act data, sensitive but unclassified (SBU) information, and all Government personnel work products that are obtained or generated in the performance of this contract.

1.10.6. Facility Access Determination. The Department of the Navy (DoN) has determined that all DoN Information systems are sensitive regardless of whether the information is classified or unclassified. All personnel accessing DoN Computer systems shall undergo investigation for a position of trust to verify their trustworthiness. The Government will include Facility Access Determination program requirements in the contract specifications when determinations for facility access only will be required on the Contractor employees.

1.10.7. Employment Eligibility Verification. No foreign national will be employed on this Government contract.

1.10.8. Defense Information System for Security (DISS). All Contractors, working within DoN spaces must be entered into the DISS, and owned by their contract company's Facility Security Officer. The receiving Command Security Manager will then service those individuals in DISS for tracking and monitoring of their investigation status. If no previous investigation exists, the Contract Employees shall complete the requirement for a favorably adjudicated T3 background investigation. T3 for positions of trust will be processed through the NDSTC Security Manager.

1.11. Safety. The Contractor shall establish and maintain a Safety Action Plan (SAP) (CDRL A009) which shall be submitted to the KO and COR no later than 10 days after contract award. If the Government has concerns with the SAP, the Contractor shall revise and resubmit the SAP to the Government within five working days.

1.11.1. In order to provide safety control for protection to the life and health of employees and other persons; for prevention of damage to property, materials, supplies, and equipment; and for avoidance of work interruptions in the performance of this contract, the Contractor shall comply with 29 Code of Federal Regulations (CFR) 1910, Occupational Safety and Health Standards. The Contractor shall comply with the above and all other applicable DoD, Navy, Federal, State and Local safety and health requirements.

a. Vessel and personnel safety are the top priority. The program shall address areas of typical shipboard evolutions, equipment operations, mission operations, maintenance, and housekeeping while incorporating applicable U.S. Coast Guard Regulations. At a minimum, the plan will address asbestos control, heat stress control, hearing and sight conservation, lead control, respiratory protection, electrical safety, gas free engineering, lock-out/tag out procedures, HAZMAT control and management, mercury control, polychlorinated biphenyls, and manmade vitreous fibers. With respect to operations, the Safety Plan shall address methods to identify and communicate recommendations to improve the process, highlight safety hazards, and implement procedures to prevent unsafe practices, and special consideration to safety requirements during all diving operations.

1.11.2. Environment and OSHA. The Contractor shall comply with all local, State, and Federal environmental and occupational safety laws, rules, and regulations. Any apparent conflict between compliance with such local, State, and Federal environmental and occupational safety laws, rules, regulations, and compliance with the requirements of the contract shall be immediately brought to the attention of the KO or authorized representative for final resolution. The Contractor shall notify the KO or authorized representative in writing in addition to any verbal notification of such conflict (CDRL A010). The Contractor shall be liable for all fines, penalties, and costs which result from violations of, or failure to comply with, all such local State, or Federal laws, rules, and regulations. All unsafe acts or conditions fostered by the Contractor or Contract Employees may be grounds for the KO or authorized representative to halt any and all Contractor performance with a commensurate deduction of monies due to the Contractor until such unsafe conditions are corrected. The Contractor shall take due caution not to endanger personnel during performance of this contract. Upon discovery of a serious hazard such as, but not limited to, fire or large fuel spill, the Contractor shall notify the KO or designated representative and COR.

The Contractor shall:

a. Comply with the Clean Water Act, the Oil Pollution Act (OPA) of 1990, 33 U.S.C. §2701 et seq., MARPOL Annex I (which prohibits all discharges of oil in special areas), and all applicable statutes and supporting U.S. Coast Guard regulations. In addition, the Contractor shall manage and dispose of HAZMAT generated during operation and maintenance, including shipyard periods, and comply with the Resource Conservation and Recovery Act, the

Comprehensive Environmental Response, Compensation and Liability Act, the Clean Air Act, the Clean Water Act, OPA 90, and all other applicable statutes and regulations.

b. For contractor operated watercraft, handle spill prevention in accordance with local regulations and OPNAVINST 5090.1 series guidance. In addition, the Contractor will develop an Oil/Fuel Spill Response Plan to facilitate immediate actions in all operational areas and submit it to the Contracting Officer via the COR within 30 calendar days after contract award. The plan will integrate with the Facility Response Plan, address continuity of training to maintain both initial and annual qualifications, and include drill periodicity requirements.

1.11.3. Reporting Mishaps. The Contractor shall train Contract Employees to recognize fire and safety hazards and encourage personnel in the performance of their duties to report fire and safety hazards and unsafe conditions to their supervisor. The Contractor shall take corrective action to remedy reported deficiencies IAW the terms of this contract. The COR shall be notified of deficiencies beyond the terms of this contract. The Contractor shall adhere to reporting of mishaps IAW OPNAVINST 5102.1E Navy Safety Investigation and Reporting Program Manual. In addition, the Contractor shall report injury or occupational illness to on-duty Contractors and Contractor accidents involving Navy property and personnel (CDRL A011).

1.11.4. Emergency Services.

a. The Contractor shall have competent personnel trained and capable of dealing with minor personnel injuries. The Contractor employees shall immediately notify their supervisor of any accident requiring emergency medical treatment. The Contractor shall, in turn, notify the KO and COR within 30 minutes of the incident (CDRL A012).

b. Emergency medical treatment and services for Contractor personnel is the responsibility of the Contractor.

1.11.5. Personnel Safety. The Contractor shall immediately correct all safety deficiencies upon notification of the deficiencies by the KO, designated representative or COR, and shall notify the COR of the corrective action to be taken once completed (CDRL A013).

1.12. Personnel. For purposes of this paragraph, the term “personnel” or “employee(s)” refers to any person performing work related to this contract, including but not limited to, the Contractor’s employees, agents, representatives, or subcontractor. The Contractor shall staff this effort with trained, competent and capable employee(s) for the discipline they are assigned to. Contractor personnel shall present a clean, neat and professional appearance. The Contractor shall ensure that employees meet all applicable federal, state, local, and installation certification, licensing, medical requirements, and qualifications to perform all assigned tasks and functions as defined in this contract prior to commencement of work. The Contractor shall not permit any personnel to work under this contract if such person is identified by a Government authorized representative to the Contractor as a potential threat to the health, safety, security, general well-being, or operational mission of the Navy and NSA PC, FL. All Contractors’ personnel shall comply with installation security and access procedures and the Contractor’s final Safety Plan.

1.12.1. Motor Vehicle Operators. If required, Contractor Employees shall possess a valid U.S. state driver's license, certificates, and permits applicable for the type and class of vehicle being operated. In accordance with NAVFAC P-300 Management of Civil Engineering Support Equipment (CESE), all Contract Employees in possession of a valid state issued operator's license are permitted to operate non-tactical general-purpose vehicles up to 10,000 pounds gross vehicle weight (GVW) without further testing or examination. For vehicles over the 10,000 GVW range, buses, or any vehicle carrying placardable quantities of hazardous material, emergency service vehicles, and special purpose vehicles (vehicles not otherwise covered by a CDL), examination and testing of operators is required to be conducted by the Contractor. For these situations, within 30 days after contract award, the Contractor shall send the COR a letter on company letterhead stating that the Contract Employee meets the licensing, testing, and evaluation criteria IAW the NAVFAC P-300 (CDRL A014).

- a. A person who holds a Florida state class E license will satisfy this requirement. Declaration to be made by Contractor on company letterhead to the COR.

1.12.2. Authorization to Work. Contractor's personnel shall be a United States Citizen.

1.12.3. Speaking, Reading, and Understanding English. Contractor shall hire and staff personnel who can communicate with Government representatives and where reading, understanding, and discussing environmental, health, and safety warnings are an integral part of an employee's duties, Contractor's employee shall be able to understand, read, write, and speak the English language fluently. English shall be the only language used with regard to this contract for written correspondence, discussions and other business transactions.

1.12.4. Identification of Contractor Employees.

- a. The Contractor (to include subcontractors) shall provide each employee an Identification (ID) Badge, which includes at a minimum, the Company Name, Employee Name and a color photo of the employee. ID Badges for Key Personnel shall also indicate their job title. ID Badges shall be worn at all times during which the employee is performing work under this contract. Each Contractor (to include subcontractors) employee shall wear the ID Badge in a conspicuous place on the front of exterior clothing and above the waist except when safety or health reasons prohibit. The Contractor (to include subcontractors) shall be responsible for collection of ID Badges upon completion of the contract or termination of employee. The Contractor shall provide a list of issued ID cards to the COR prior to the contract performance date (CDRL A015). The Contractor shall update and resubmit the list, as needed, to reflect personnel changes.

- b. All Contractor personnel attending meetings, answering Government telephones, and working in other situations where their Contractor status is not obvious to third parties are required to identify themselves as such to avoid creating an impression in the minds of members of the public that they are Government officials.

c. Contractor personnel shall ensure that all documents or reports produced by the Contractor are suitably marked as Contractor products or that Contractor participation is appropriately disclosed.

1.12.5. Conflict of Interest.

- a. a. Organizational Conflict of Interest. Contract Employees performing work under this contract may receive, have access to, or participate in the development of proprietary or source selection information (e.g., cost or pricing information, budget information or analyses, specifications or work statements, etc.), or perform evaluation services which may create a current or subsequent Organizational Conflict of Interests (OCI) as defined in FAR Subpart 9.5, Organizational and Consultant Conflicts of Interest. The Contractor shall notify the KO immediately whenever it becomes aware that such access or participation may result in any actual or potential OCI and shall promptly submit a plan to the KO to avoid or mitigate any such OCI (CDRL A016). The Contractor's mitigation plan will be determined to be acceptable solely at the discretion of the KO, and in the event the KO unilaterally determines that any such OCI cannot be satisfactorily avoided or mitigated, the KO may affect other remedies as he or she deems necessary, including prohibiting the Contractor from participation in subsequent contracted requirements which may be affected by the OCI.

b. Employment of Government Personnel. The Contractor shall not knowingly employ any person who is a U.S. Government employee if employing that person would create a conflict of interest. Additionally, the Contractor shall not knowingly employ any person who is an employee of the Government, either military or civilian, unless such person seeks and receives written approval according to DoD 5500.7-R, Joint Ethics Regulations by the individual's commander or director. A copy of the authorization will be provided to the COR. In addition, the Contractor is prohibited from employing Government Quality Assurance Representatives whom the Contractor knows or should have known are responsible for monitoring any contracts/subcontracts awarded to the service provider.

1.12.6. Conduct of Employees. The Contractor shall ensure that Contract Employees conduct does not reflect discredit upon the Government. The Contractor shall ensure that personnel present a professional appearance. The Contract Employees shall observe and comply with all local policies and procedures concerning fire, safety, environmental protection, sanitation, security, and possession of firearms or other lethal or illegal weapons or substances. The Contractor is responsible for ensuring that any Contractor employees providing services under this contract conduct themselves and perform services in a professional, safe, and responsible manner. The Contractor shall remove from the job site any Contract Employee for reasons of misconduct or security. In accordance with DoD Directive 5500.7-R, "Joint Ethics Regulation", Contractor employees must avoid being improperly influenced in the execution of their duties under the contract. Particular attention should be paid to acceptance of gifts/ gratuities, and on non-disclosure of sensitive or classified information. The Contractor shall ensure employee conduct complies with 41 U.S. C 423 relative to release of acquisition related information or

actions or discussions which may prejudice future competitions. The Contractor shall ensure no Contract Employees conduct political related activities or events on base facilities.

1.12.7. Employee Uniforms. All Contract Employees shall wear a Contractor-furnished uniform that is suitable to the environmental conditions for their position. At a minimum, the uniform shirt will have their respective employer's company name on the front. The uniform must be professional in appearance and kept neat and clean. Attire shall be appropriate to the occasion, in good taste, clean, and in good repair. Shirts, blouses, and outerwear may be solid or patterned, and shall be devoid writing or pictures. Clothing or exposed tattoos may not be sexually provocative, suggestive, advocate drug use, or depict racial comments, vulgarities, or offensive language. Tank top shirts, underclothes worn as outer garments, cut-off shorts, tattered ballcaps (backwards wear), sandals, or flip-flops are not appropriate. Ripped jeans or jeans with holes intentionally made into them are not in good repair and not appropriate. For safety reasons, all shoes must be closed-toed when working outside of an office environment. Contract Employees are required to always wear hard-soled shoes or boots in all practical areas/ranges.

1.12.8. Contractor Advertising. The Contractor shall not place or display advertising of any kind on Government property. The Contractor shall obtain pre-approval from the Government prior to posting photographs and videos taken while in the execution of contract performance.

1.12.9. Special Qualifications. The Contractor shall provide proof of qualifications via resumes of the following positions outlined in 1.12.9 with the proposal (CDRL A017). Resumes are required because of the complexity of the maritime skills needed to determine the additional training required should a turnover be needed and to ensure there is no impact to the training schedule.

1.12.9.1. The Program Manager for the contract shall:

a. Experience: Have a Bachelor of Science Degree in Management, Marine Transportation, Engineering, or Marine management experience directly related to vessels and equipment outlined in the performance requirements of this contract.

b. This work is unclassified, but requires a favorably adjudicated T3 background investigation.

1.12.9.2. The Senior Maintenance Engineer shall:

a. Experience: Be a minimum of a USCG Licensed National Designated Duty Engineer of Motor § 11.524 DDE - 4,000 HP / 3000 kW with experience in Naval INSURV processes, routine operation, supervising and maintaining Preventive Maintenance System (PMS) documentation, corrective maintenance, service craft overhaul, and repairs of shipboard systems, small boats, and salvage gear.

b. Qualification: Support requires the use of the Navy Material Maintenance Management (3M) Software Scheduling Program (SKED) to plan and document preventative maintenance of all service craft, small boats, trailers, salvage gear, and ancillary support

equipment; therefore, familiarization with SKED, 3M 301 Maintenance Person Fundamentals and Tasks, 3M 303 Work Center Supervisor Fundamentals and Tasks are required within 30 days of reporting to the command (CDRL A018).

c. This work is unclassified, but requires a favorably adjudicated T3 background investigation.

1.12.9.3. The YDT Craftmaster at NDSTC shall:

a. Experience: Be a minimum of a USCG Licensed National Master of Self-Propelled less than 200 GRT upon Near Coastal Waters § 11.426 with a Radar Observer endorsement and an Automatic Radar Plotting Aids endorsement. Additionally, shall have experience operating under conditions requiring precise navigation, station keeping, close quarter maneuvering, precision anchoring, open water mooring, and diving operations. Alternate or backup Craftmasters can have this qualification as a collateral duty with another position.

b. Qualification: Qualify as YDT Craftmaster through the NDSTC YDT Craftmaster Qualification Program process during the transition period, or for new hires after contract award within 30 days of reporting aboard (CDRL A019). The qualification process includes Personnel Qualification Standards fundamental knowledge checks in YDT systems and procedures (e.g., engineering, alarms, damage control), five under instruction underway periods, evaluated drills (e.g., loss of steering, man overboard), and an oral evaluation board. The reference is NDSTC Instruction 3505.2 series.

c. This work is unclassified, but requires a favorably adjudicated T3 background investigation.

1.12.9.4. The YDT Duty Engineer at NDSTC shall:

a. Experience: Be a minimum of a USCG Licensed National Designated Duty Engineer of Motor § 11.524 DDE - 4,000 HP / 3000 kW with experience in routine operation, preventative maintenance, corrective maintenance, and repairs of shipboard systems.

b. Qualification: Support requires the use of the Navy Material Maintenance Management (3M) Software Scheduling Program (SKED) while supervising and performing maintenance on all engineering, deck, fire-fighting and emergency equipment; therefore, familiarization with SKED and 3M 301 Maintenance Person Fundamentals and Tasks are required within 30 days of reporting to the command (CDRL A020).

c. This work is unclassified, but requires a favorably adjudicated T3 background investigation.

1.12.9.5. The YDT Apprentice Engineer at NDSTC shall:

a. Experience: Have a minimum of a USCG endorsement as a Qualified Member of the Engine Department with an Apprentice Engineer rating.

b. Qualification: Support requires the use of the Navy 3M Program while performing maintenance on all engineering, deck, fire-fighting and emergency equipment; therefore, familiarization with SKED and 3M 301 Maintenance Person Fundamentals and Tasks are required within 30 days of reporting to the command (CDRL A021).

1.12.9.6. The Able Seaman (AB) at NDSTC shall:

a. Experience: Have a minimum of a USCG endorsement as an AB Limited and have completed a Standards of Training, Certification and Watchkeeping (STCW) complaint and USCG approved Basic Training course.

b. Qualification: Support requires the use of the Navy 3M Program while performing maintenance on all engineering, deck, fire-fighting and emergency equipment; therefore, familiarization with SKED and 3M 301 Maintenance Person Fundamentals and Tasks are required within 30 days of reporting to the command (CDRL A022).

1.12.9.7. The Ordinary Seaman at NDSTC shall:

a. Experience: Have a minimum of a USCG endorsement as an Ordinary Seaman and have completed a Standards of Training, Certification and Watchkeeping (STCW) complaint and USCG approved Basic Training course.

b. Qualification: Support requires the use of the Navy 3M Program while performing maintenance on all engineering, deck, fire-fighting and emergency equipment; therefore, familiarization with SKED and 3M 301 Maintenance Person Fundamentals and Tasks are required within 30 days of reporting to the command (CDRL A023).

1.12.9.8. The Boat House Supervisor at NDSTC shall:

a. Experience: Have at a minimum a USCG National Master of Self-propelled Vessels of Less Than 25 GRT Upon Near Coastal Waters endorsement and three years of recent small boat coxswain experience or three years recent experience in a Navy or Coast Guard deck rating with small boat coxswain qualifications.

b. Qualification: Support requires the supervision of the Navy 3M Program in the Boat House; therefore, familiarization with SKED, 3M 301 Maintenance Person Fundamentals and Tasks, and 3M 303 Work Center Supervisor Fundamentals and Tasks are required within 30 days of reporting to the command (CDRL A024).

c. Qualification: Within 30 days of reporting onboard NDSTC, complete command coxswain qualification consisting of the following requirements: complete qualification card, pass the Third and Second Class Swim test or present an STCW A-VI/1 Certificate of Completion, demonstrate coxswain proficiency through underway observations for each type of watercraft, and successfully pass an oral board (CDRL A025). The Government administered swim tests consist of a deep water jump from a minimum height of 5 feet, remain afloat for 5

minutes, swims of 50 and 100 yards respectively; using the crawl, breast, sidestroke and/or backstroke, and in-water shirt and trouser inflation for a makeshift personal flotation device. Supervisor may be required to operate small boats during manning issues (personnel absences) or other contingencies.

d. This work is unclassified, but requires a favorably adjudicated T3 background investigation.

1.12.9.9. The Contractor providing outboard mechanic support at NDSTC shall:

a. Experience: Have current certifications to work on engines identified in TE-1. At least one Outboard Mechanics shall be a Mercury / Suzuki Certified Technician.

b. Qualification: Support requires the use of the Navy 3M Program to perform and document preventative maintenance; therefore, familiarization with SKED and 3M 301 Maintenance Person Fundamentals and Tasks are required within 30 days of reporting to the command (CDRL A026).

1.12.9.10. The Contractor providing coxswain support at NDSTC shall:

a. Experience: Have at a minimum a USCG National Master of Self-propelled Vessels of Less Than 25 GRT Upon Near Coastal Waters endorsement and three years of recent small boat coxswain experience or three years recent experience in a Navy or Coast Guard deck rating with small boat coxswain qualifications.

b. Qualification: Support requires the use of the Navy 3M Program to perform and document preventative maintenance; therefore, familiarization with SKED and 3M 301 Maintenance Person Fundamentals and Tasks are required within 30 days of reporting to the command(CDRL A027).

c. Qualification: Within 30 days of reporting onboard NDSTC, complete command coxswain qualification consisting of the following requirements: complete qualification card, pass the Third and Second Class Swim test or present an STCW A-VI/1 Certificate of Completion, demonstrate coxswain proficiency through underway observations for each type of watercraft, and successfully pass an oral board (CDRL A028). The Government administered swim tests consist of a deep water jump from a minimum height of 5 feet, remain afloat for 5 minutes, swims of 50 and 100 yards respectively; using the crawl, breast, sidestroke and/or backstroke, and in-water shirt and trouser inflation for a makeshift personal flotation device. Supervisor may be required to operate small boats during manning issues (personnel absences) or other contingencies.

1.12.9.11. For Contractor's personnel, whose task involve the use of Government Material Handling Equipment (MHE) i.e., forklifts (i.e., small boat transportation, logistics, and training project support):

a. Certification: A current Department of Transportation (DoT) physical exam and medical card. Physicals are valid for five years until the age of 60 and then annually thereafter.

b. Qualification: Completed formal classroom and hands-on instructional education on OSHA standards (29CFR 1910.178) for forklift operations.

c. Certification: An operator performance evaluation by the Contractor's company after the formal training and on the specific types of forklifts listed in the task.

d. Completed formal instructional education refresher and follow-on operator performance evaluation every three years.

e. For each employee, 30 days after reporting to the command, the company shall send the COR a letter on company letterhead stating that the employee meets the criteria to operate government MHE and the specific types of MHE the employee is qualified and certified to operate (CDRL A029). In addition, the company shall provide a copy of each employee's physical examination, medical card, formal training certificate of completion, and performance evaluation.

f. The COR will give each contractor a "Handler Only" Medical Examiner's Certificate (OPNAV Form 8020/6) issued by the Navy's Occupational Health Department. Possession of the certificate by the contractor during MHE operations is required.

g. Under circumstances when the operator has been involved in any accident using government owned MHE, the company shall be responsible for any damages or loss of property incurred, subsequent refresher training, and any medical surveillance/examinations and license renewals.

1.12.9.12. For Contractor's personnel, whose task involves the use of Government cranes:

a. Certification: A current physical exam (NSTM 589 paragraph 589-3.3.3.1).

b. Qualification: Completed NDSTC qualification card (NDSTCINST 11260.1series).

c. Completed the Naval Facilities Engineering Command (NAVFAC) P-307, Category 3 (CAT 3) Non-cab Operated Crane Course. This course is online. My Navy Portal/Navy e-learning. Number: NCC-C3CS-04.2 Cat 3 Non-Cab Operated Crane Safety

d. For each employee, 30 days after reporting to the command, the company shall send the COR a letter on company letterhead stating that the employee meets the criteria to operate government cranes (CDRL A030). In addition, the company shall provide a copy of each employee's physical examination.

e. Under circumstances when the operator's negligence caused an accident using government owned cranes, the company shall be responsible for any damages or loss of property

incurred, subsequent refresher training, and any medical surveillance/examinations and license renewals.

1.13. Key Personnel: The following personnel are considered key personnel by the Government:

a. Program Manager (PM):

1) The Contractor shall provide a PM who shall be responsible for the performance of the work. The name of this person shall be designated in writing to the KO within 5 calendar days after contract award (CDRL A031); thereafter any changes shall be provided five (5) business days prior to expected change and no less than 24-hours after unplanned changes. The PM shall have full authority to act for the Contractor on all contract matters relating to daily operation of this contract.

2) The PM shall be available via cell phone 24-hours a day, 7 days a week for emergency response situations. The Contractor will notify the COR and respective Craft Officer or Designated Government Representative (DGR) of all substitutions.

3) The Government considers the PM position as the Contractor's point of contact with the KO, COR, and the NDSTC Craft Officer in matters concerning this contract. The Craft Officer represents NDSTC on daily issues with the PM. The PM will be available at NDSTC for day-today requirements of this contract, and except as otherwise delineated reports to the NDSTC Craft Officer. This task cannot be a collateral duty of another position.

1.13.1. Supervision of Contractor Employees. The Government will not exercise any supervision or control over Contractor or Subcontractor employees while performing work under the contract. Such employees shall be accountable solely to the Contractor, not the Government. The Contractor, in turn, shall be accountable to the Government for Contractor or Subcontractor employees.

1.14. Contractor Travel. Occasional travel may be required and for which the Government authorizes the use of government vehicles. Expected travel requirements outside of the local areas are likely associated with service craft overhaul. For travel outside the local area, the contractor shall notify/request approval from the COR at least two weeks prior to travel (CDRL A032). The request shall include cost estimates for lodging, airfare, car rental, meals and incidental expenses, and other anticipated expenses. The Contractor will be authorized travel expenses consistent with the substantive provisions of the Joint Travel Regulation (JTR) and the limitation of funds specified in this contract. All travel requires Government approval/authorization and notification to the COR.

1.15. Training. The Government will send Contractor employees to courses if the KO and COR Officer determine the training or certification is in the best interest of the Government. The COR will apprise the Contractor of course dates, times, and location for which Contractor shall schedule their employee's to attend. All training will be conducted during normal operational hours.

1.16. Other Direct Costs. The Contractor shall submit all cost affiliated with travel as outlined in paragraph 1.16 for COR approval prior to engaging in fixed arrangements.

1.17. Data Rights. None

1.18. Phase In/Phase Out Period. IAW FAR Clause 52.237-3, Continuity of Services, the Government will exercise a thirty (30) day phase in/phase out period to minimize any decreases in productivity and to prevent possible negative impacts on additional services, if required. Additionally, the Contractor will develop and submit a detailed Transition Plan IAW sections in 1.20.1 of the PWS upon submission of proposal. Any changes to the Transition Plan, from the time of solicitation to the start of services, which include personnel and qualifications, shall be immediately submitted to the COR. The plan shall specify a training program, qualification plan, date for transferring responsibilities, and shall be subject to the Contracting Officer's approval. The plan will include two weeks of YDT crew training onboard YDT-17 and YDT-18 and two weeks of Boathouse training for familiarization of the watercraft and equipment on a not to interfere basis with training operations.

1.18.1. Phase In Period. During the phase in period:

1.18.1.1. All Contractors will check into NDSTC, obtain CACs and permissions for Navy Marine Corps Intranet (NMCI) accounts, or a DBIDS credential.

1.18.1.2. All Contractors will conduct a turnover with their incumbent counterparts, to include but not limited to a walkthrough of processes, inventory and turnover of GFE, introductions to points of contacts, familiarization of Technical Exhibits, qualification of respective tasks, attend respective command operational meetings, and familiarize with the stock system, salvage gear, Navy 3-M. Points of Contact are:

Contracting Officer's Representative:
TBD

NDSTC Designated Government Representative:
TBD

1.18.2. Phase Out Period. During the phase out period:

1.18.2.1. The Contractor shall provide an electronic copy of a comprehensive phase out plan for COR approval no later than 30 days prior to contract expiration (CDRL A033). The plan shall at a minimum identify a training program and a date for transferring responsibilities for each division of work described in the plan.

1.18.2.2. The Contractor shall provide sufficient experienced personnel during the phase-out period to ensure that the services called for by this contract are maintained at the required level of proficiency.

1.18.2.3. The Contractor shall in good faith work with the successor in transitions and clarification of phase out services. The contractor is still responsible for services outlined in this PWS during the phase out period.

PART 2 DEFINITIONS, ACRONYMS & ABBREVIATIONS

2. Definitions and Acronyms.

2.1. Definitions.

2.1.1. Cannibalize. Remove parts from Government property for use or for installation on other Government property.

2.1.2. Contract Administrator. The official Government representative delegated authority by the Contracting Officer to administer a contract. This individual is normally a member of the appropriate Contracting/Procurement career field and advises on all technical contractual matters.

2.1.3. Contractor. A supplier or vendor awarded a contract to provide specific supplies or services to the Government. The term used in this contract refers to the prime.

2.1.4. Contractor Acquired Property. Property acquired, fabricated, or otherwise provided by the contractor for performing a contract and to which the Government has title.

2.1.5. Contracting Officer (KO). A person with authority to enter into, administer, and/or terminate contracts, and make related determinations and findings on behalf of the Government. Note: The only individual who can legally bind the Government.

2.1.6. Contracting Officer's Representative (COR). An employee of the U.S. Government appointed by the KO to administer the contract. Such an appointment shall be in writing and shall state the scope of authority and limitations. This individual has authority to provide technical direction to the Contractor as long as that direction is within the scope of the contract, does not constitute a change, and has no funding implications. This individual does **NOT** have the authority to change the terms and conditions of the contract.

2.1.7. Controlled Area. A controlled space extending upward and outward from a specified point. This area is typically designated by a commander or director, wherein sensitive information or operations occur and requires limitations of access.

2.1.8. Deliverable. Anything that can be physically delivered but may include non-manufactured things such as meeting minutes or reports.

2.1.9. Equipment. A tangible item that is functionally complete for its intended purpose, durable, nonexpendable, and needed for the performance of a contract. Equipment is not intended for sale and does not ordinarily lose its identity or become a component part of another article when put into use. Equipment does not include material, real property, special test equipment or special tooling.

2.1.10. Government Furnished Equipment (GFE). Government property that is incidental to the place of performance, when the contract requires Contractor Employees to be located on a Government site or installation, and when the property used by the Contractor within the location remains accountable to the Government. Items considered to be incidental to the place of performance include, for example, office space, desks, chairs, telephones, computers, and fax machines and are in “as-is” condition.

2.1.11. Government-Furnished Property (GFP) or Government Property. Property in the possession of, or directly acquired by, the Government and subsequently made available to the Contractor for performance of a contract. Government-furnished property includes, but is not limited to, spares and property furnished for repair, maintenance, overhaul, or modification. Government-furnished property also includes Contractor-acquired property if the Contractor-acquired property is a deliverable under a cost contract when accepted by the Government for continued use under the contract. Property will be available for use and will be in an “as-is” condition.

2.1.12. Government Property. All property owned or leased by the Government. Government property includes both Government-furnished property and Contractor-acquired property. Government property includes material, equipment, special tooling, special test equipment, and real property. Government property does not include intellectual property and software. Property will be available for use and will be in an “as-is” condition.

2.1.13. Key Personnel. Contractor personnel that are evaluated in a source selection process and that may be required to be used in the performance of a contract as the Key Personnel listed in the PWS. When Key Personnel are used as an evaluation factor in best value procurement, an offeror can be rejected if it does not have a firm commitment from the persons that are listed in the proposal and the person’s resume does not list the requisite education, certification or experience needed for the position. The prime Contractor is responsible for the performance of all subcontractors.

2.1.14. Loss of Government Property. Unintended, unforeseen, or accidental loss, damage, or destruction of Government Property that reduces the Government’s expected economic benefits of the property. Loss of Government Property does not include occurrences such as purposeful destructive testing, obsolescence, normal wear and tear, or manufacturing defects. Loss of Government Property includes, but is not limited to:

- a. Items that cannot be found after a reasonable search.
- b. Theft.
- c. Damage resulting in unexpected harm to property requiring repair to restore the item to usable condition.
- d. Destruction resulting from incidents that render the item useless for its intended purpose or beyond economical repair.

2.1.15. Material. Property that may be consumed or expended during the performance of a contract, component parts of a higher assembly, or items that lose their individual identity through incorporation into an end-item. Material does not include equipment, special tooling, special test equipment, or real property.

2.1.16. Non-Personal Services. The personnel rendering the services are not subject, either by the contract's terms or by the manner of its administration, to the supervision and control usually prevailing in relationships between the Government and its employees. Non-personal service contracts are authorized by the Government in accordance with FAR 37.012, under general contracting authority, and do not require specific statutory authorization.

2.1.17. Physical Security. Actions that prevent the loss or damage of Government property.

2.1.18. Property. All tangible property, both real and personal.

2.1.19. Property Administrator (PA) or Plant Clearance Officer. An authorized representative of the Contracting Officer appointed in accordance with agency procedures, responsible for administering the contract requirements and obligations relating to Government property in the possession of the Contractor.

2.1.20. Property Records. Records created and maintained by the Contractor in support of its stewardship responsibilities for the management of Government property.

2.1.21. Provide. To furnish, as in Government-furnished property, or to acquire, as in Contractor-acquired property.

2.1.22. Quality Assurance. The Government procedures to verify that services being performed by the Contractor are acceptable IAW established standards and requirements of this contract.

2.1.23. Quality Assurance Specialist. An official Government representative concerned with matters pertaining to the contract administration process and quality assurance/quality control. Acts as technical advisor to the Contracting Officer in these areas.

2.1.24. Quality Assurance Surveillance Plan (QASP). An organized written document specifying the surveillance methodology to be used for surveillance of Contractor performance.

2.1.25. Quality Control. All necessary measures taken by the Contractor to assure that the quality of an end product or service shall meet contract requirements.

2.1.26. Real Property. See Federal Management Regulation 102-71.20 (41 CFR 102-71.20).

2.1.27. Sensitive Property means property potentially dangerous to the public safety or security if stolen, lost, or misplaced, or that shall be subject to exceptional physical security, protection, control, and accountability. Examples include weapons, ammunition, explosives, controlled substances, radioactive materials, hazardous materials, waste, or precious metals.

2.1.28. Subcontractor. One that enters into a contract with a prime Contractor. The Government does not have privity of contract with the subcontractor.

2.1.29. Unit Acquisition Cost means:

- a. For Government-furnished property, the dollar value assigned by the Government and identified in the contract; and
- b. For Contractor-acquired property, the cost derived from the Contractor's records that reflect consistently applied generally accepted accounting principles.

2.1.30. Wide Area Workflow (WAWF). A secure web-based system for electronic invoicing, receipt, and acceptance. WAWF allows Government vendors to submit and track invoices and receipt/acceptance documents over the web and allows Government personnel to process those invoices in a real-time, paperless environment.

2.1.31. Work Day. The number of hours per day the Contractor provides services IAW the contract.

2.1.32. Work Week. Monday through Friday, except for Federal holidays unless specified otherwise.

2.2. Acronyms.

3-M	Navy Material Maintenance Management
ACOR	Alternate Contracting Officer's Representative
AQL	Acceptable Quality Level
AT	Antiterrorism
ATO	Antiterrorism Officer
BOC	Board of Certification
CA	Corrective Action
CAC	Common Access Card
CAP	Contractor Acquired Property
CDR	Contractor Deficiency Report
CEODD	Center for Explosive Ordnance Disposal and Diving
CFR	Code of Federal Regulations
CLIN	Contract Line Item Number
CMR	Contract Manpower Reporting
CONUS	Continental United States (excludes Alaska and Hawaii)
COR	Contracting Officer Representative
COTS	Commercial-Off-the-Shelf
CUI	Controlled Unclassified Information
DBIDS	Defense Biometric Identification System
DFARS	Defense Federal Acquisition Regulation Supplement
DGR	Designated Government Representative

DISS	Defense Information System for Security
DoW	Department of War
DoN	Department of the Navy
DoT	Department of Transportation
DPMA	Docking Phased Maintenance Availability
EOD	Explosive Ordnance Disposal
FAR	Federal Acquisition Regulation
FOS	Full Operating Status
FPCON	Force Protection Condition
FTE	Full Time Equivalent
FY	Fiscal Year
GFE	Government Furnished Equipment
GFP	Government-Furnished Property
GRT	Gross Register Tons
HAZMAT	Hazardous Material
HIPAA	Health Insurance Portability and Accountability Act of 1996
HPAC	High Pressure Air Compressor
IA	Information Assurance
IAW	In Accordance With
ID	Identification
IT	Information Technology
JER	Joint Ethics Regulation
JTR	Joint Travel Regulation
KO	Contracting Officer
MHE	Material Handling Equipment
NACLC	National Agency Check, Local Agency Check and Local Credit Check
NAVSEA	Naval Sea Systems Command
NAVSUP	Naval Supply
NETC	Naval Education and Training Command
NCACS	Navy Commercial Access Control System
NCS	Noncritical Sensitive
NDSTC	Naval Diving and Salvage Training Center
NMCI	Navy Marine Corps Intranet
NSA PC	Naval Support Activity Panama City
OCI	Organizational Conflict of Interest
OCONUS	Outside Continental United States (includes Alaska and Hawaii)
ODC	Other Direct Costs
OPA	Oil Pollution Act
OPM	Office of Personnel Management
OPNAV	Chief of Naval Operations
OPNAVINST	Chief of Naval Operations Instruction
OPSEC	Operations Security
OSHA	Occupational Safety and Health Administration
PA	Property Administrator
PII	Personally Identifiable Information
PIPO	Phase In/Phase Out

PLCO	Plant Clearance Officer
PM	Program Manager
PMS	Preventive Maintenance System
POC	Point of Contact
POA&M	Plan of Action and Milestones
PRS	Performance Requirements Summary
PWS	Performance Work Statement
QA	Quality Assurance
QAP	Quality Assurance Program
QASP	Quality Assurance Surveillance Plan
QC	Quality Control
QCP	Quality Control Program
RAV	Repair Availability
ROV	Reduced Operating Status
RHIB	Rigid Hull Inflatable Boat
SAAR-N	System Authorization Access Request Navy
SECNAV	Secretary of the Navy
STCW	Standards of Training, Certification and Watchkeeping
T3	Tier 3
TAD	Temporary Additional Duty
TE	Technical Exhibit
USAF	United States Air Force
USCG	United States Coast Guard
USMC	United States Marine Corps
VAR	Visit Authorization Request
WAWF	Wide Area Work Flow
YDT	Yard Diving Tender

PART 3

GOVERNMENT FURNISHED PROPERTY, EQUIPMENT, AND SERVICES

3. Government Furnished Items and Services.

3.1. Facilities. The Government will provide the following facilities for the Contractor's use in support of this contract; offices and/or workspaces, and access to all common areas (e.g., restrooms, breakrooms):

Table 1: NDSTC Furnished Facilities

Building 353	Square feet	Purpose
Room	200	Craft Office with 3 desks and 3 computer stations
Room	112	Craftmasters office with 2 desks and 2 computer stations
Room	390	Boathouse office with 2 desks and 2 computer stations
Room	128	Head
Cage	117	Supply storage with racks, cabinets, spare parts, and 1 small tool chest
Cage	143	Outboard engine shop with toolbox, workbench, and locked cabinets
Cage	285	Hydraulic repair with 2 tool boxes, cabinets, and work benches
Outside	N/A	YDTs Berthing, Boat Ramp, all pier areas inside of white lines
Outside	N/A	Across bridge North Parking Lot, boat storage
Outside	N/A	Bay 3 for HAZMAT storage
Building 369	Square feet	Purpose
High Bay	4,736	Boat Maintenance with jet ski, boat, engine, yellow gear, HPUs, bead blaster, belt sander, parts washer, underwater tools storage
Rm	1,525	2 Air Force 8' x 12' storage enclosures, 3 high racks, soda-sorb storage, battery storage and charging area
Cage	250	Storage of paddle boards, paddles, outboard engines and stands
Building 438	Square feet	Purpose
Rm 111	250	Supply Storage

Any alterations to facilities shall be approved prior in writing and property shall be returned to its original condition prior to completion of this contract. Contractor shall be responsible for any damages or loss of use due to their negligence. Any signage shall conform to standard Navy/Installation signs/format and must be approved by the KO and COR in writing prior to placement and may not be permanently affixed to any Government property or structure.

3.2. Utilities. The Government will provide the following utilities; all utilities in the facilities will be available for the Contractor's use in performance of tasks outlined in this PWS to include, but are not limited to all necessary ship service utilities at the pier (e.g., shore power, potable water) and disposal services for sewage, oily waste, garbage, HAZMAT for the YDTs, watercraft, and associated equipment. If utilities are furnished, the following is required:

The Contractor shall instruct employees in utilities conservation practices. The Contractor shall be responsible for operating under conditions that preclude the waste of utilities, which include turning off the water faucets or valves after using the required amount to accomplish cleaning vehicles and equipment.

3.3. Equipment. The Government will provide the following equipment (i.e., make available, NOT transfer custody) to on-site Contractors to perform their respective craft support requirements. Alterations to government equipment is not authorized and property shall be returned in its original condition prior to completion of this contract. Contractor shall be responsible for any damages or loss of use due to their negligence. Contractors are authorized to use Government owned (not GFP) pickup trucks (F150, F250, F350) on a checkout basis from NDSTC Supply for launch/ recovery and transport of boats on/off base. Identification of vehicle use shall be non-invasive/removable to ensure no damages to vehicles, i.e. placards placed in front and/or aft windows.

3.3.1. Office spaces at NDSTC have Government provided telephones, utilities, desks, chairs, lockers, janitorial services, and computers, software, printers and copier equipment sufficient for the administrative requirements of coordinating, scheduling and documenting operations, maintenance and repairs.

3.3.2. Government will furnish to the Contractor, NDSTC watercraft and its associated equipment (e.g., outboard engines, trailers) listed in TE-1. In addition, the Government will furnish the tools and equipment listed in TE-2 and TE-3 which are required to perform maintenance, testing, and repairs at NDSTC. At turnover, the Government warrants that vessel platforms and Government furnished equipment are in good material condition, safe to perform all missions and that equipment is in proper working order.

3.3.3. The Government reserves the right to substitute, add, subtract or change the number and/or types of watercraft.

3.4. Materials. The Government will provide the following materials:

3.4.1. Office supplies, to include but not limited to, pens, pencils, paper, binders, scissors, clipboards all other standard office consumables required by the on-site Contractors to perform their respective logistical programs.

3.4.2. Consumable supplies necessary to perform preventative maintenance, and other maintenance and repairs (e.g., vessels, small boats, jet skis, trailers) as required.

3.4.3. Fuel oil (e.g., diesel, gasoline) and lube oil (i.e., motor oil) for all watercraft.

3.5. Record Keeping.

a. The Contractor shall establish and maintain the records of Government property in accordance with FAR 52.245-1, Government Property, and the Guidebook for Contract Property Administration. They are:

- (1) Name, part #, NSN
- (2) Quantity received, issued, on hand
- (3) Unit acquisition cost
- (4) Unique Item Identifier
- (5) Unit of Measure
- (6) Accountable contract #
- (7) Location
- (8) Disposition
- (9) Posting reference or date of transaction
- (10) Date placed in service

The Contractor shall tag, label, or mark Government Furnished Property as subject to serially managed items IAW DFARs 252.245-7000.

3.6. Property Control Plan. The Contractor shall provide a Property Control Plan, IAW FAR Subpart 45.5, to administer Government Property with their Contractor Quality Control Plan.

3.6.1. The Contractor shall develop and administer an equipment check out/in procedure for Government use of the Government Furnished Property. Documentation for the procedure will include property name, comments section for documenting the condition of the property on check out and check in, and names and signatures of the Contractor and Government employee checking out the property and the name and signature of the Contractor checking in the property. The Property Control System plan is due to the Contracting Officer within 30 calendar days after contract award (CDRL A034).

3.6.2. Within two weeks of the start of the contract, the Government and Contractor will jointly inventory the items in TE-1 through TE-3 and afterwards the Contractor will sign for them (CDRL A035). The Contractor will videotape watercraft inspections to include underwater hull inspections at the Contractor's expense. The Contractor will provide a copy of the videotape on DVD to the COR within one week of the vessel inspection date. The Government and Contractor will base the material condition of each vessel, to include noted deficiencies beyond normal wear and tear for a watercraft of that age on the videotape. The Contractor will propose a plan to correct the deficiencies at the next RAV or DPMA period.

3.6.3. Annually in April the Contractor will conduct a physical inventory using TE-1 through TE-3, document discrepancies, sign and date each TE, and send the TE's to the COR (CDRL A036).

3.6.4. Within 10 days of the contract end, the Government and Contractor will jointly inventory the items in TE-1 through TE-3 using the same process and afterwards the Government will sign for them (CDRL A037). The Contractor shall be responsible for the costs associated with the replacement of missing items and those damaged in excess of normal wear and tear.

PART 4
CONTRACTOR FURNISHED ITEMS AND SERVICES

4. Contractor Furnished Items and Responsibilities.

4.1. Contractor Furnished Items. Everything included in this paragraph and its subparagraphs is basic to the contract and should be included in the contract price.

4.2. Responsibilities of the Contractor.

- a. The Contractor shall provide a safe working environment for all persons in his/her employ as prescribed by Engineering Manual (EM) 385-1-1, "General Safety Requirements" and 29 CFR 1910 "Occupational Health and Safety". The Contractor shall be responsible for all damages to persons and property that occur in connection with the work and service under this contract, without recourse against the Government.
- b. Contractor shall exercise extreme caution to protect building finishes, private property, military property, etc., from damage during the performance of these contract requirements. Contractor shall be responsible for all loss or damage or whatsoever kind and nature to all Government property, while in the performance of these contract requirements, which result in whole or in part from the negligence or omissions of Contractor, any of his subcontractors or any of their employee, agent or any representative of the Contractor.
- c. The Contractor shall also be responsible for all materials delivered and work performed until completion and acceptance of the entire work, except for any completed unit of work which may have been accepted under the contract.

PART 5

SPECIFIC TASKS

5. General. The Contractor shall provide all skilled personnel, equipment, supplies, tools, materials, supervision, and other items necessary to perform this prescribed project as defined in this PWS to meet the performance requirements, except for those items specified as Government furnished property and services.

5.1. The Program Manager (PM) shall (Craft Department, NDSTC, and NSA PC):

5.1.1. Contractor's point of contact with the KO, the COR, and the NDSTC Craft Officer in matters concerning this contract. This task cannot be a collateral duty of another position.

5.1.2. Be responsible for coordinating, formulating, disseminating, and implementing all task requirements issued by the Government for NDSTC and have the authority to commit the Contractor in all matters related to this contract.

5.1.3. Ensure the watercraft are crewed and maintained to support training and operational requirements in accordance with Contract requirements. The COR, and Craft Officer, as appropriate, will be informed immediately of any failure to meet training or operational requirements due to manning or maintenance issues, or when any service craft, boat, watercraft or equipment failure or damage occurs. In the event of damage or major failure, the PM will prepare notices in a format as prescribed by the COR.

5.1.4. Coordinate with the Craft Officer as needed for required maintenance and repairs to ensure minimal impact on training. For NDSTC, the PM or a designated senior Contractor is required on site, at the Boat Shop, to oversee daily operations.

5.1.5. Ensure adequate funds are available under the Supplies/Services Contract Line Item Number (CLIN). All costs for parts required for repairs shall be charged at the lowest available cost to the Government utilizing same make and model parts, unless otherwise directed. Under no circumstance shall the Government be liable for reimbursing the Contractor beyond the Not-to-exceed (NTE) funding available on the Repair Parts, Overhaul and Over and Above CLINs.

5.1.6. Immediately notify the NDSTC Craft Officer and the COR verbally of any instance in which a watercraft under this contract has a spill of Hazardous Material (HAZMAT, oil, fuel, etc.) or is involved in any incident resulting in bodily injury, death, or damage to craft, property, or equipment. In addition, the PM will conduct an inquiry and submit a report to the Craft Officer, COR, and Contracting Officer within 24 hours following the incident (CDRL A038). The report should include facts and circumstances, extent of material damages and personal injuries, and recommendations to prevent a recurrence.

5.1.7. Track the cost of parts by Agency, e.g., NAVY LABOR, USMC LABOR, AF LABOR, NAVY PARTS, USMC PARTS, AF PARTS, OVERHAUL, via Utilization Expense Report due monthly to the COR(CDRL A039).

5.2. The Senior Maintenance Engineer shall (Craft Department, NDSTC, and NSA PC):

5.2.1. Ensure all service craft, boats, watercraft, systems and equipment, and other assigned port service areas and equipment are maintained in accordance with original equipment manufacturer's specifications and applicable regulations. This task cannot be a collateral duty of another position.

5.2.2. Manage and coordinate the predictive, preventive, corrective maintenance, and overhaul program of all service craft, boats, watercraft, equipment, machinery, and appurtenances of the craft, regardless of the frequency or importance of use. Technical Exhibit-1 (TE) through TE-3 provide a list of Government Furnished Craft, Government Furnished Equipment, and Yellow Gear respectively for which the Contractor is responsible for maintenance and repairs.

5.2.3. Supervise and perform maintenance on the YDTs, to include engineering, deck, fire-fighting and emergency equipment.

5.2.4. Supervise vessel overhauls conducted every 3 to 5 years, and lead preparations for the Chief of Naval Operation's Navy Board of Inspection and Survey conducted every 3 to 5 years and other material inspections as required by Naval Ship's Technical Manual Chapter 583 and other directives.

5.2.5. Ensure the YDTs maintain no less than 50% fuel capacity year round and that fueling operations do not interfere with NDSTC's training schedule. In the event that fuel capacity will drop below 50%, the Contractor will notify the Craft Officer and request authorization for continued operations(CDRL A040).

5.3. YDT support (Craft Department, NDSTC, NSA PC)

5.3.1. YDT Craftmaster shall:

5.3.1.1. Navigate the assigned YDT in accordance with U.S. Coast Guard rules and regulations as well as other federal, state, and local laws that may apply, and is the sole authority for safeguarding embarked personnel and the YDT. The Craftmaster has the authority to abort operations when there is a clear and present danger to safety of embarked personnel and the YDT. To the greatest extent possible, an abort decision shall be coordinated with the embarked NDSTC Project Officer or Craft Officer. Under normal operating conditions, the Craftmaster will not abort any operation or other assigned evolution without consultation with and concurrence of the embarked NDSTC Project Officer or Craft Officer.

5.3.1.2. Ensure a sailing list is delivered to the NDSTC quarterdeck for all underway periods outside of Alligator Bayou (waters adjacent NSA PC piers).

5.3.2. The YDT Duty Engineer shall:

5.3.2.1. Supervise, operate, and perform maintenance on all engineering, deck, fire-fighting and emergency equipment.

5.3.2.2. Supervise the YDT Maintenance Program.

5.3.2.3. Review documentation on machinery maintenance and history.

5.3.2.4. Train all YDT personnel on engineering systems, damage control, and be a member on all YDT qualification boards.

5.3.3. The YDT Apprentice Engineer shall:

5.3.3.1. Perform duties in deck firefighting, emergency equipment, auxiliary equipment and deck machinery, routine and preventative maintenance, damage control, and maintaining documentation and machinery history.

5.3.4. The Able Seaman (AB) shall:

5.3.4.1. Perform duties in support of the YDT, which include shipboard operations, deck equipment, machinery operation, rigging, deck seamanship, stevedoring, damage control, and deck maintenance and preservation (e.g., priming, painting, and rigging overhaul).

5.3.5. The Ordinary Seaman shall:

5.3.5.1. Perform duties in support of the YDT, which include shipboard operations, rigging, deck seamanship, damage control, and deck maintenance and preservation.

5.4. Small Craft support (Craft Department, NDSTC, NSA PC)

5.4.1. The Boat House Supervisor shall:

5.4.1.1. Be familiar with NDSTC's inventory of watercraft for US Navy, USMC, and USAF training evolutions which includes 38' aluminum hard-hulled boats, 33' aluminum hulled boat, 27' fiberglass boat, and a mix of center consoles, cabins, jet skis, and inflatable boats (e.g., MK V Zodiac). The watercraft have assorted outboard engines from 50 to 300 HP. NDSTC uses watercraft to transport instructors, medical personnel, and student divers to the dive site, deploy and recover divers, provide return transport to base, support YDT diving operations, and if required perform high-speed runs with diving casualties to treatment facilities. A minimum of one coxswain and one crewmember is required to operate a boat (e.g., two contractors, one contractor and one government). The maximum number of watercraft operated simultaneously is eleven.

5.4.1.2. Manage tasks required to support the Craft Department's daily operations, to include attending the weekly training schedule planning meeting, coordinating NDSTC Training Department requirements with appropriate watercraft and coxswain support, and when required, submitting the proper requests for Operational Area clearance to the Naval Support Activity Panama City Port Operations Coordinator.

5.4.1.3. Supervise coxswain training, Craft Department HAZMAT usage, and Boat House supply issues under the cognizance of the appropriate NDSTC command representative. Regarding coxswain training, NDSTC requires that coxswains are able to maintain boats on station in heavy current and windy conditions while deploying and recovering divers, and as required, navigate using GPS and RADAR.

5.4.1.4. Supervise the Boat House Maintenance Program.

5.4.1.5. Coxswain small boats during manning issues (personnel absences) or other contingencies.

5.4.1.6. Manage waterfront areas and coordinate services for all assigned watercraft required for normal operations.

Examples of services include assignment of line handlers and adequate placement of fenders.

5.4.2. Contractors providing outboard mechanic support shall:

5.4.2.1. Perform maintenance and repair of all outboard engines, watercraft, and trailers in TE-1. Removal and installation of outboard engines on watercraft is the responsibility of the Contractor.

5.4.2.2. Use a maintenance program to perform and document preventative maintenance.

5.4.2.3. Perform maintenance, installation and repair of navigation lights, wing collars, rescue sleds and change the oil on all wave runners (i.e. Jet Ski) listed in TE-1 every 100 operating hours or annually whichever comes first. Contractors may launch / recover, conduct maintenance check-rides and break-in operations on the wave runners after completing the appropriate operator qualifications. Only government personnel will operate wave runners during any diving or swimmer training operation.

5.4.3. Contractors providing coxswain support shall:

5.4.3.1. Be familiar with NDSTC's inventory of watercraft for US Navy, USMC, and USAF training evolutions which includes 38' aluminum hard-hulled boats, 33' aluminum hard-hulled boat, 27' fiberglass boat, and a mix of center consoles, cabins, inflatable boats (e.g., MK V Zodiac), and wave runners. The watercraft have assorted outboard engines from 50 to 300 HP. NDSTC uses watercraft to transport instructors, medical personnel, and student divers to the dive site, deploy and recover divers, provide return transport to base, support YDT diving operations, and if required perform high-speed runs with diving casualties to treatment facilities. A minimum of one coxswain and one crewmember is required to operate a boat (e.g., two contractors, one contractor and one government).

5.4.3.2. Launch, coxswain, recover, wash down with freshwater, and fuel NDSTC's inventory of watercraft. Storage of watercraft on trailers when not in use is required. NDSTC requires coxswains to maintain boats on station in heavy current and windy conditions while deploying and recovering divers, and as required, navigate using GPS and RADAR. Additionally,

contractors will operate government vehicles, Tug Technologies MR 10-34T Boat Tug, and Hyster H40XM 4,000 lb. forklift.

5.4.3.3. Have three coxswains dedicated specifically for USMC training evolutions. Support requires coxswaining three watercraft simultaneously per the required daytime and nighttime training evolutions and provide coxswain training to USMC personnel. Training evolutions will not exceed 12 hours in a 24-hour period. Based on environmental factors, a six-day work week may be required with the stipulation that contractors will not exceed 80 hours for a two-week pay period. The USMC will provide one person per boat to meet the two-crewmember requirement for training evolutions.

5.4.3.4. Have three coxswains dedicated specifically for USAF training evolutions. Support requires coxswaining three watercraft simultaneously per the required daytime and nighttime training evolutions and provide coxswain training to USAF personnel. Training evolutions will not exceed 12 hours in a 24-hour period. Based on environmental factors, a six-day work week may be required with the stipulation that contractors will not exceed 80 hours for a two-week pay period. The USAF will provide one person per boat to meet the two-crewmember requirement for training evolutions.

5.4.3.5. Have up to four coxswains dedicated for Navy training evolutions. Training evolutions are typically during the daytime, and the watercraft may be used to deploy and recover divers, as a rescue craft for YDT diving operations, or another purpose as required by the Navy. The Navy will provide one person per boat to meet the two-crewmember requirement for training evolutions.

5.4.3.6. Assist instructors with teaching watercraft familiarization to students, which consists of supervised launch and recovery techniques and basic boat coxswain skills.

5.4.3.7. Use the Navy 3M Program to perform and document routine preventative maintenance on NDSTC engines, watercraft, and trailers in TE-1, TE-2, and TE-3. Removal and installation of outboard engines on watercraft is the responsibility of the Contractor.

5.4.3.8. Provide support for watercraft operations and maintenance during training evolutions conducted away from NSA Panama City, i.e., the place of performance. Additional support includes preparing up to five watercraft, trailers and equipment for highway transit to the remote site.

5.5. Non-Specific Position Requirements. The following tasks are Contractor responsibilities not specific to a particular job, but that Contractor has to train, qualify, or provide a sufficient number of employees to support the mission.

5.5.1. Crane Operator. Each YDT requires two crane operators. Crane operators must participate in NDSTC's YDT crane operation training and pass an exam.

5.5.2. Government Material Handling Equipment (MHE). For tasks requiring the Contractor to operate Government MHE (i.e., forklifts, aircraft tugs) at NDSTC.

5.5.3. HAZMAT Handler. The vessels, watercraft, and equipment may contain and generate HAZMAT and Hazardous Waste. For the purpose of this PWS, HAZMAT and Hazardous Waste are synonymous. The Contractor shall use the Government's Temporary Storage and Disposal Facility for disposal of all HAZMAT. HAZMAT shall be properly packaged and containerized with complete identification of all contents clearly labeled on the container in accordance with all regulations. For tasks requiring the Contractor to handle and dispose of HAZMAT, the company is responsible for providing the appropriate level of HAZMAT training and ensuring the training complies with Occupational Safety and Health Administration, EPA, State and current NDSTC instructions regarding local HAZMAT regulations.

5.5.4. High Pressure Air Compressor (HPAC) - Compressor Watch. The HPAC is used to support NDSTC YDT diving operations pierside and underway. The Government is responsible for operating and maintaining the HPAC and associated air system. During the operation, the Government will line up and shut down the system, and monitor the HPAC and diver's air system flasks during the entire procedure. The Contractor will assist with lighting off, i.e. starting, and securing the HPAC. Contractors supporting this task will complete the Compressor Watch qualification in accordance with NAVDIVESALVTRACEN 1601.3 series.

5.5.5. Supply Management and Requisition Support. The Contractor shall provide supply support for the watercraft, support equipment, and various port operations areas. Supply support includes the associated logistical process responsibilities such as identifying the repair part, ordering, tracking, storing, shipping, receiving, issuing spares and repair parts, and disposal. The Government will provide a warehouse to store spare and repair parts. The Contractor's Supply Representatives shall:

5.5.5.1. Maintain custody and security of Government furnished spare and repair parts. In the event adequate space is not available for storage of equipment in Government facilities, the Contractor shall obtain necessary warehouse space as directed by the Contracting Officer. Additional warehouse space is a reimbursable item.

5.5.5.2. Maintain current levels of spare and repair part inventories and in a ready-for-issue condition, and furnish all consumables required for the performance of this contract. TE-6 provides a representative list of required consumables.

5.5.5.3. Use the Federal Supply System, e.g., National Stock Number, General Services Administration, as the primary means to order replacement parts, materials, and consumables. Requisitions through the Federal Supply System require submission through the NDSTC Supply Departments. The Government will pay for purchases through the Federal Supply System.

5.5.5.4. Purchase parts, materials, and consumables not available through the Federal Supply System from an open market source. The Contractor will notify the COR prior to the purchase of any single part in excess of \$1,000 or for group purchases in excess of \$3,500. For purchases in excess of \$5,000, the Contractor shall obtain at least three quotes to ensure adequate price competition or provide an acceptable justification as to why it was impracticable to do so. The Contractor shall provide copies of documentation to the COR.

5.5.5.4.1. Submit Purchase Orders that delineate the respective service/ location CLIN to the COR in order to ensure that purchases will not exceed or incur costs that exceed the authorized not-to-exceed amount or the amount of funding in the Supplies/Services CLIN at the time of the order.

5.5.5.4.2. Submit a Monthly Utilization Expense Report to the COR that includes the purchased item name and cost, justification of the purchase, CLIN charged, and vendor.

5.5.5.4.3. Invoice the Government at the Contractor paid price to the subcontractor or the supplier of the supplies. The invoice will not include material handling charges, overhead, general and administrative costs, or profit that are in any way associated with the Contractor's provision of such goods and services.

5.5.5.4.4. Contractor shall provide a monthly invoice to the COR no later than the 5th calendar day of the following month(CDRP A041).

5.6. YDT operations. The design of the YDT is primarily for the training of divers in open water. YDTs have the capacity to support surface supplied air and mixed gas diving, scuba diving, closed circuit diving, and recompression chamber operations independently. Each YDT has a NAVSEA certified hyperbaric recompression chamber onboard. In general, the platforms will operate with a five-person crew out of NSA Panama City, Florida on a daily basis, returning to port each night. The crew consists of the Craftmaster, Duty Engineer, Apprentice Engineer, Able Seaman and Ordinary Seaman. There are five YDT operating profiles throughout the year, which the variability of government requirements precludes establishing firm levels of contractor support – (Pierside, Underway, Extended Local Operations), Repair Availability Status (RAV), and Reduced Operating Status (ROS).

5.6.1. Full Operating Status (FOS). Three of the five operating profiles fall under the category of FOS, they are Pierside, Underway, and Extended Local Operations. NDSTC trains students in diving operations from the YDT in the pierside and underway profiles.

5.6.1.1. Pierside. The YDT's are moored pierside at NSA Panama City, FL and maintained in a readiness condition to become fully operational within six hours of notification. No user services or underway operation will be required except in the event of an emergency or severe weather. Full staffing of the YDT is not required. It is the responsibility of the Contractor to determine the staffing level necessary to perform required maintenance and repairs.

5.6.1.2. Underway. The five-person crew is the minimum support requirement for daily operations underway. Occasionally, one to two additional Ordinary Seamen or unlicensed crewmembers may be required to support operations or training at sea. The COR will notify the Contractor a minimum of three calendar days in advance of additional contractor support requirements. Government will not provide reimbursement for additional crew, i.e. substitutes.

5.6.1.3. Extended Local Operations. Extended local operations consist of overnight trips to other Gulf Coast ports. Underway periods will not exceed 12 hours, but operations can include

weekends and holidays. The COR will notify the Contractor a minimum of 30 calendar days in advance of planned Extended Local Operations and of additional contractor support requirements. The five-person crew is the minimum support requirement. It is the responsibility of the Contractor to determine if additional crew are required for the safe navigation of the vessel. Government will not provide reimbursement for additional crew, i.e. substitutes.

5.6.2. Repair Availability (RAV). NDSTC schedules RAV periods during which the Contractor conducts maintenance and light repairs pierside at NDSTC dependent upon the training schedule. RAV periods are annual, outside of Docking Phased Maintenance Availability (DPMA) periods, and normally occur during a 2-3 week Christmas stand down period, but are subject to change due to unplanned training requirements. The standard work week availability of the Duty Engineer is the minimum support requirement. Support from the remaining crew for maintenance and repair work is up to the Contractor. Government will not provide reimbursement for additional crew, i.e. substitutes.

5.6.3. Reduced Operating Status (ROS). A ROS period is Government-directed when NDSTC does not require the use of an YDT, and during which requires a minimum amount of contractor support services. The Government will give the Contractor written notice 10 calendar days in advance of a ROS period. During the ROS period, the Contractor is responsible for the overall integrity of the YDT. Once a month, on a not to interfere basis with other work, qualified personnel will bring up all equipment and systems to operating temperatures for one hour, and operate YDT underway. The Government will give the Contractor written notice 15 calendar days to remove the YDT from ROS and place it in FOS.

5.6.4. Overview of Dive Training Operations for Underway profile. The following is an example of the standard operating procedure for diving operations underway, due to differences in diving curriculums actual operations may differ in both scope and nature.

5.6.4.1. Pre-departure. The Project Diving Officer and Craftmaster concur with the pre-determined daily training dive site. The YDT contractor crew performs a safety and fire hazard inspection and pre-underway check. After the instructors and students report aboard, a sailing list is hand carried to the NDSTC quarterdeck.

5.6.4.2. Dive-training Site. After arrival at the site, the Project Diving Officer and Craftmaster observe the weather and sea conditions and decide on the type of moor; one, two, or three-point. The Craftmaster moors the YDT as close to, if not over the dive-training site. With the moor set, the Contractor crew tags out required equipment for diver safety. After Instructor verification of tags, diving operations commence.

5.6.4.3. Diving Operations. The contractor crew shall set an anchor watch and commence ship's work per the Craftmaster on a not to interfere basis with diver training. The Contractor crew is responsible for staffing damage control teams and firefighting. Use of embarked NDSTC staff and students to augment damage control teams and firefighting is at the discretion of the Project Diving Officer or Master Diver. At the conclusion of diving operations, the Contractor crew clears the tags and returns the YDT to the designated pier at NDSTC.

5.6.5. Overview of Dive Training Operations for Pierside profile. The Contractor crew shall ensure pierside mooring and commence ship's work per the Craftmaster on a not to interfere basis with diver training. The Contractor crew is responsible for staffing damage control teams and firefighting. The Contractor crew tags out required equipment for diver safety and ensures the air compressor and diver davit is operational. After Instructor verification of tags, diving operations commence. At the conclusion of diving operations, the Contractor crew clears the tags.

5.6.6. Training Plan. The Contractor shall develop a Training Plan and submit it to the COR within 30 calendar days after contract award(CDRL A042). The plan will address employee training and requalification requirements (i.e., classes, dates, locations and companies providing the training) and include a matrix that depicts employee qualifications and expiration dates. In addition, the Contractor will submit to the COR a Monthly Training Report that provides a status of all contractor qualifications and if applicable expiration dates(CDRL A043).

5.6.6.1. YDT Craftmaster and crewmembers must demonstrate the drills in Table 2 to the Craft Officer or his representative. The Contractor will document their completion in the YDT vessel's logbook.

Table 2: Annual Drills

Periodicity	Drill
Quarterly	Man Overboard
Quarterly	Shipboard Fire while Underway
Quarterly	Two and/or Three Point Moor over a Pre-determined Dive Site
Quarterly	Oil/Fuel Spill Response
Annually	HAZMAT Response
Annually	Abandon Ship
Annually	Hurricane Response

5.6.7. Watercraft inspections. At various times throughout the contract period, the service craft, boats, watercraft, equipment and facilities will undergo formal Government conducted inspections, for which the Government will notify the Contractor no less than seven days prior to the inspection. At a minimum, the Government will perform material inspections semi-annually to ensure overall conformance with the requirements of the contract. The Contractor shall participate in the inspections and shall maintain the craft and equipment in an operational condition during the inspections. Consider inspections as a scheduled operation unless otherwise directed by the Craft Officer. The Contractor shall correct noted discrepancies and upon completion notify the Craft Officer, and COR.

5.6.8 Special Events.

5.6.8.1. Occasionally NDSTC hosts public affairs activities, which requires the use of YDTs and other watercraft in local waters. Embarkations are limited to a maximum of 55 passengers, to include Government and civilian personnel. Any increase in passengers requires preapproval

from the Commanding Officer or the Craft Officer. The Contractor shall stow all gear and equipment, and clean and prepare the YDT and watercraft to receive guests. Events held during the week is part of normal operations, FOS Underway. The COR will notify the Contractor a minimum of 30 calendar days in advance for weekend and holiday events. Assume five, one-day weekend or holiday events per year during daylight hours.

5.6.8.2. If the YDT is unable to get underway (e.g., mechanical issues) or foul weather cancels an underway planned training evolution, the government may reschedule the training evolution for a weekend or federal holiday. The COR will notify the Contractor a minimum of 24 hours in advance of the rescheduled date.

5.6.8.3. Supporting Information. For planning purposes, Table 3 provides a snapshot of mandatory operational and maintenance support requirements for one YDT crew annually. The remaining workdays are available for routine administrative and maintenance tasks and vacation periods. The Contractor shall be capable of operating both YDT's simultaneously in daily operations underway and/or extended Operations in addition to daily watercraft requirements supported by the Coxswains and Outboard Mechanics.

Table 3: Mandatory Operational and Maintenance Support

YDT Operating Profiles	Days (Estimated)		Hours Per Day	Purpose
	Workdays	Weekend		
Pierside	20	0	8	Support Diving Operations
Underway	125	0	10	Support Diving Operations
Underway	15	0	12	Support Diving Operations
Extended Local Operations	15	0	< 12	Transit to another Port
RAV	17	0	8	Maintenance
Special Events	3	5	10	Public Affairs / Rescheduled Training Days

5.7. YDT standards of appearance. The minimum standards of appearance is the stowage of all loose gear, equipment and tools in a safe, secure, and orderly fashion; shined interior and exterior bright work; clearly legible labels and stencils; and the presence of clean and untattered national ensign, jack, pennants, and signal flags. In addition, the Contractor will maintain:

5.7.1. The exterior hull, weather decks and superstructure, including ladders, booms, winches, capstans, and all other deck fittings in a clean, rust free condition. Waterline and draft Marks shall be repainted with sufficient frequency to ensure a crisp and useful appearance.

5.7.2. Mooring lines and rigging to their designed safe working load limits, and regular inspection and maintenance of ground tackle for a rust and corrosion free condition.

5.7.3. All interior spaces in a clean, corrosion/rust-free and properly painted condition, ship's furniture in good repair, and decks and ladders free of tripping hazards. Deck tiles and ladder treads shall be replaced as necessary to prevent slipping hazards.

5.7.4. Engineering spaces in a neat, clean, oil-free condition with bilges dry, or at a minimum practical level, and oil-free. Attention shall be given to small leaks, insulation and lagging, painting and preservation, equipment stowage, and similar housekeeping items. Machinery shall be maintained to original equipment manufacturer's specifications and professional machine engineering standards of material condition and readiness required for mission performance. Packing glands, guards, and other similar items shall be routinely maintained. Constant attention shall be given to maintenance and repair actions that impact on safety. A sound painting and coating system shall be maintained. Status boards, posted instructions and diagrams shall be neatly and accurately maintained.

5.8. Preventive and corrective maintenance - all watercraft. The Contractor's plan shall have adequate personnel to perform all preventative and corrective maintenance and will consider the operational effectiveness of using contractor personnel to accomplish corrective maintenance instead of industrial or technical assistance. Corrective maintenance and repairs consist of activities such as troubleshooting, disassembly, repair, replacement, assembly, startup, and adjustments. The Contractor shall also ensure the skill level of the personnel performing the work is commensurate with the technical difficulty of the work and that the repairs are of a lasting, high-quality nature. Maintenance and repairs should never affect the mission training. The Contractor will:

5.8.1. Develop a Maintenance Plan in accordance with S9008-MM-GYD-010 NAVSEA Boat Maintenance Best Practices Guide by using the existing Navy Material Maintenance Management (3M) Software Scheduling Program (SKED) for assigned service craft, boats, watercraft, their systems and equipment, and salvage equipment and may be augmented by technical manual data, original equipment manufacturer's specifications, machinery history, duty cycle, and applicable regulations as deemed necessary by the Contractor. The maintenance plan shall focus on using commercially acceptable practices and the data from the predictive maintenance program to provide the same or greater level of reliability as accomplished under the Navy 3M Program. For the NDSTC YDT's, the Contractor shall maintain and update the PMS program and the Caterpillar Diesel Engine monitoring and diagnostic software. The Maintenance Plan is due to the COR within 30 calendar days after contract award(CDRL A044).

5.8.2. Perform all preventative maintenance on assigned service craft, boats, watercraft, their systems and equipment, salvage equipment and other assigned port service areas and equipment in accordance with its Government approved maintenance plan.

5.8.3. Maintain the YDT cranes in strict compliance with their PMS data, the approved maintenance plan and NAVSEA certifications. The Government is responsible for conducting all weight tests and will retain responsibility for weight test and administering certifications. The Contractor is responsible for supporting the Government certification team.

5.8.4. Accomplish lubricating and hydraulic oil testing using Government provided service contracts, as detailed below. The Government will provide testing services for lubricating and hydraulic oil as detailed in TE-4. The Contractor shall adhere to the requirements of TE-4 with

respect to administering and maintaining the testing programs and maintaining all required records. The Contractor shall respond to and perform as necessary preventive and corrective maintenance as indicated by the testing program results or by the Government provided service engineer. Maintenance products such as for cleaning, descaling, etc., are not included in this Government provided service, the Contractor will order these as a consumable.

5.8.5. Perform corrective YDT maintenance and repairs in port and at sea, as required and in a timely manner to ensure the craft's material condition is maintained at full operating level and further deterioration in the condition of equipment and systems does not occur. Examples of corrective maintenance are pump overhaul, injector replacement, gunwale repair, piping repair, breaker or transformer replacement, deck-fitting repairs, and leak correction.

5.8.6. Maintain the gage calibration program for all gages associated with the operation and maintenance of watercraft. NDSTC has a gage calibration lab for which the Contractor will use as the primary source. If NDSTC cannot support the gage calibration request, the Contractor will request COR approval to send the gage to a civilian calibration lab and invoice the Government.

5.8.7. Use NDSTC's welding services for repairs and corrective maintenance. If NDSTC cannot support a welding service request, the Contractor will request COR approval to subcontract welding services.

5.8.8. Perform complete upper and lower end rebuilds on outboard engines. An estimated eight outboard engines require rebuilds each year. Personnel working on outboard motors shall be supervised by a factory-certified technician.

5.8.9. Shall maintain records for labor and material expended for each item in TE-1 (i.e., watercraft and outboard engines). Prior to submission of the monthly invoice, the Contractor will submit a Monthly Operations and Maintenance Report to the COR (CDRL A045) that includes the watercraft or equipment name (e.g., hull number, serial number) and:

5.8.9.1. An operational summary based on logbooks, and engine hours.

5.8.9.2. Brief description of the particular maintenance and the date(s) performed, labor hours expended, list of the parts used and their cost. The Government requires separate accounting of labor and material cost by CLIN (e.g., USMC Operation and Maintenance Service, USMC Supplies and Services).

5.8.10. Submit a Monthly Fuel, Oil, and Water Report to the COR(CDRL A046). For the YDTs, the report will include status of the levels for the fuel tanks, potable water, wash-down, lube oil, waste oil, and emergency generator fuel. In addition, the report will include amount of fuel loaded that month. For all other watercraft, the report will provide amount of fuel purchased in four categories: NDSTC's US Navy, USMC, USAF, and Boathouse.

5.9. Docking phased maintenance availability (DPMA), Overhaul. Per the strategic maintenance program developed by NAVSEA to maximum operation the YDTs receive major maintenance and repairs at a shipyard every four years during a DPMA period. During DPMA periods, the

shipyard performs work such as blasting, priming and painting the hull, tank inspections, diesel generator and propulsion system work in a dry dock. During the development of the PWS, FY27, FY29, FY31, and FY33 are the projected DPMA periods. The FYs could change due to variances in training and operational requirements. All other depot level maintenance for the YDTs and assigned service craft, boats, watercraft, their systems and equipment, and other assigned port service areas and equipment is the responsibility of the Contractor.

5.9.1. Shipyard Availabilities. The Government shall provide the Contractor with applicable cost amounts for each overhaul period. If a delay of the work during the DPMA impacts bringing the vessel back on line at a predetermined date and is the fault of the Contractor performing the overhaul, there will be a predetermined credit identified per day, i.e., Daily Liquidated Damages that the shipyard or overhaul company will credit under the overhaul cost. The Contractor will develop a generic Plan of Action and Milestones (POA&M) and procedures for use in the preparation for and procurement of shipyard availability. The Contractor will:

5.9.1.1. Coordinate with COR and the Craft Officer in scheduling availability periods so as not to interfere with operations and training schedules and with identified dates develop a POA&M. Build in sufficient time in the procurement schedule for adequate review of the work packages by the interested repair facilities, and scheduling offerors' inspections of the YDT. In the case of regular overhauls, the Government requires a minimum of three working days for review of offers and 21 calendar days for dry dock preparation after award and prior to start of the dry dock. In turn the Craft Officer will review and make comments and then forward it to the COR and Contracting Officer for approval. Submit required POA&M updates to the Craft Officer in a timely manner.

5.9.1.2. Develop Shipyard Work Packages. The packages shall identify required work and specifications that include a detailed description of the necessary repairs, equipment affected, and a separate cost estimate. In addition, the work packages will include:

5.9.1.2.1. Contract terms and conditions for the enforcement of shipyard or repair facility performance, liquidated damages for late delivery, Clause for Waiver of Liens, and all required Government Contract clauses.

5.9.1.2.2. Allow a minimum of five workdays on either side of the DPMA for removal of equipment and reoutfitting of the YDT upon return. Equipment includes: air systems, diving equipment, tarps, and other ancillary equipment necessary to conduct diving operations or return to FOS.

5.9.1.2.3. The requirement for the shipyard to prepare a dry dock report and the shipyard's docking plan (i.e., block spotting plan) as an attachment upon completion of the dry dock.

5.9.1.3. Submit a planned overhaul work package with pricing for the COR's approval. The Craft Officer will provide review and comments on the work package in a timely manner, typically within 15 calendar workdays. The COR will review and provide comments or approve the work packages when determined to be satisfactory.

5.9.1.4. Upon receipt of the COR's approval, submit the work package and solicit quotes to potential sub-contractors to shipyards within the geographic area. If after releasing the work package for bids the Contractor determines that additional time is required for the repair period, the Contractor shall submit a request to the COR for the additional time with full justification. The COR will review the request and advise the Contractor of the final determination.

5.9.1.5. Evaluate the proposals, and submit a report with a recommendation for award of the subcontract to the COR. The report shall include the name, location, total amount offered, cost breakdown for each item, and any exceptions taken by any repair facility with regard to the work package or performance period. Based on evaluation of the opening results and Contractor's recommendation, the COR may consent to the placement of the subcontract.

5.9.1.6. Manage the shipyard package, payment and all other administrative functions required during the shipyard period. All costs associated with onsite administration of shipyard packages, including travel, lodging, and per diem, shall be included in the basic per diem price of this contract. The Government does not authorize reimbursement of management and administrative costs as a separate item. In addition, the Contractor will procure sufficient materials to prevent delays of availability start and completion dates.

5.9.1.7. Confer with the Designated On-site Representative to ensure accomplishment of all work is in accordance with the approved work package. The COR will designate an On-site Representative and determine what authority the Representative has for each industrial assistance effort. The Representative is responsible for weekly progress updates to the NDSTC Leadership and COR and the satisfactory completion of all directed work.

5.9.1.8. Upon completion of a DPMA period, submit a DPMA Report for all depot level actions regardless of the number of man-hours expended. The report shall include the vessel's name, identification of repair activity and brief description, date and times of repair activity, activity performing repairs, and certification by the Program Manager, Senior Maintenance Engineer, or YDT Craftmaster as accurate.

5.9.2. Ship Alterations (SHIPALTS).

5.9.2.1. The Government may request minor or major modifications to equipment and/or vessels via a work order. Generally, the accomplishment of such work will occur during a scheduled dry dock or RAV. Upon receipt of the work order, the Contractor will review the work items, and provide comments and cost estimates for each item. The Contractor will include work items approved by the Contracting Officer in the work package for the next scheduled maintenance availability, and if required, assist the Government in requesting NAVSEA approval for vessel configuration changes.

5.9.2.2. The Government may independently accomplish changes and modifications to the platforms. Unless otherwise directed by the Contracting Officer, the Contractor remains responsible for the operation and maintenance of all systems and subsystems other than those undergoing change or modification. Installation will generally be on a not-to interfere basis with operations.

5.9.2.3. **Acceptance Inspections and Testing.** The Contractor will perform pre- and post-modification inspections and acceptance testing for all changes or modifications to the craft and for installation of systems or equipment. Upon completion, provide copies of the pre- and post-modification inspection and acceptance testing to the Government representative.

5.9.3. **Industrial Assistance.** In the event depot level maintenance for the YDTs and assigned service craft, boats, watercraft, their systems and equipment, and other assigned port service areas and equipment is beyond the capabilities of the Contractor's personnel, the Contractor may subcontract the work with approval from the COR. All repair parts and Industrial Assistance purchased, under the micro-purchase threshold shall require COR approval prior to purchase. All repair parts and Industrial Assistance over micro-purchase threshold shall require the Contracting Officer's approval prior to purchase. Whenever possible, the Contractor will consolidate the subcontracted work to reduce costs. Management and administrative costs for subcontracted work are part of the Contractor's monthly rate and are not reimbursable. The Contractor will:

5.9.3.1. Notify the Craft Officer, and COR for the need for industrial assistance. In turn, the COR will approve or disapprove the request. Upon approval for industrial assistance under \$3,500 the Contractor will proceed according to the process in the Definition of Rates section.

5.9.3.2. For COR approved industrial assistance work over \$3,500, develop the work package or work specification and submit it Craft Officer and COR for review. After review, the Contractor will solicit the package for quotes. The Contractor will provide the quotes to the Craft Officer, COR and Contracting Officer for final approval.

5.9.3.3. Submit a weekly Industrial Assistance Status Report to the COR for any industrial assistance action, to include DPMAs, that exceeds 15 calendar days. The report shall include detailed progress of work performed and outstanding along with costs incurred.

5.9.4. **Managing Growth of Depot Level Maintenance Subcontracts.** The consent to subcontract for depot level maintenance for all work includes authorization for the Contractor to negotiate and accomplish change orders to work items within a specified cost limit. Generally, the not-to-exceed limit is 10% of the total bid price for subcontractor work. Proper and accurate documentation of all change order actions is the responsibility of the Contractor. The Contractor will:

5.9.4.1. Submit a request to the COR for an increase in the limit by an amount considered necessary to complete the work, if it becomes apparent that the not-to-exceed limit will be insufficient. Include in the requests a description of the work required, the estimated cost, additional time required to accomplish the work, reasons why the work was not included in the original work package, and why deferral until a future work package is not possible.

5.9.4.2. Notify the COR of any change order, regardless of cost, that is expected to require additional time to complete.

5.10. **Port services.** The Contractor will:

5.10.1. Set up and remove all oil and fuel spills booming equipment in support of NDSTC watercraft fueling and defueling operations. Contractor coordination with the Craft Officer and NSA Panama City is required prior to and during operations.

5.10.2. Arrange for or provide diving services to clean the hulls at a minimum of semi-annually and replace zincs, as necessary, for craft that remain in the water for extended timeframes, and for other diving services or tasks as directed by the COR to be covered under the NTE Parts/Services or Overhaul CLINs. Diving services will comply with 29 CFR Subpart T 1910.401-441, Occupational Safety and Health Standards - Commercial Diving Operations.

5.10.3. Keep all assigned shoreside facilities in an orderly and sanitary condition. The Contractor is responsible for any damage to assigned spaces caused by Contractor's employees or subcontractors.

5.10.4. For port services requirements outside of Panama City, arrange for all necessary services including ship services, pilotage, dockage, tugs, potable water, shore power, trash and garbage removal, sewage removal, HAZMAT removal, line handlers and any other services necessary for entering, operating in and departing port.

5.11. Training projects. NDSTC has four large, submersible aluminum training modules used by students during UWSH and Salvage training evolutions. The Contractor will:

5.11.1. Place salvage support equipment, gear, and hydraulic tools required for Salvage Training Module evolutions on the pier in the pre-determined positions directed by the Craft Officer or his representative.

5.11.2. Maintain and repair all salvage equipment, gear, and hydraulic tools listed in TE-3.

5.12. Definition of rates. The rates for services provided under this contract shall be payable at the applicable, fully loaded rates stipulated in this section. Payments shall be payment in full for all services, equipment, supplies and maintenance of Government equipment, and all contractor personnel, including all overtime (except as noted below), penalty time, bonuses, payments and emoluments payable to contractor personnel for services under this Contract, irrespective of the geographic scope of the services and including the carriage of hazardous cargoes.

5.12.1. Monthly Rate. The Monthly Rate includes costs to operate and maintain watercraft and equipment required by this PWS, and the YDTs in FOS underway or pierside and RAV. The Monthly Rates for Navy, USMC, and USAF Contractor Support Services requirements and maintenance costs are broken out into separate CLINs.

5.12.2. Over and Above CLIN Rate Maintenance. Rates are for additional work items not covered under the Monthly Rate and are payable in addition to the applicable Monthly Rate. The COR will notify the Contractor in writing when a specific Over and Above Rate service is required and the amount of funding required for the requirement. Over and Above Rates are assessed based upon personnel reporting for duty at the agreed upon time and place until they are

released from service or the equipment and repair required. If an oral notification of the requirement is given to the Contractor, the COR or Contracting Officer shall confirm the notification in writing within 48 hours.

5.12.3. Severe Weather Rate. Table 4 contains additional work covered under Severe Weather CLIN. If an oral notification of the requirement is given to the Contractor, the COR or Contracting Officer shall confirm the notification in writing within 48 hours.

Table 4: Severe Weather

Flat Rate Items	Frequency
Preparation for Severe Weather	Per event
Severe Weather Execution	Per event
Travel Required as per COR by KO approval	Per event

5.12.4. Additional Service Rate. The Government reserves the right to require the Contractor to provide additional services within the general scope of the contract, e.g., depot level maintenance, diving services, port services outside of Panama City. The Government will add additional services to the contract through negotiated modifications approved by the Contracting Officer and funded under the NTE Parts/Services or Overhaul CLINs.

5.12.5. ROS Rate. The Government will negotiate a reduction in the Monthly Rate and other associated costs not specifically payable under another CLIN for vessels placed in ROS due to contractor delay in work.

5.13. Historical Labor Data. Table 5 contains historical information on Full Time Equivalents (FTE) typically utilized for this work. This information is for historical reference only and is not a recommendation by the Government for determining final work force requirements.

Table 5: Historical Labor Data.

Historical Positions	Location	Historical FTE
Program Manager	NDSTC	1
Senior Maintenance Engineer	NDSTC	1
Boat House Supervisor	NDSTC	1
YDT Craftmaster	NDSTC	2
YDT Duty Engineer	NDSTC	2
YDT Apprentice Engineer	NDSTC	2
YDT Able Seaman	NDSTC	2
YDT Ordinary Seaman	NDSTC	2
Coxswain	NDSTC	10
Outboard Mechanic	NDSTC	3

5.14. Deliverables.

5.14.1. The Contractor shall test all employees with pre-employment drug screening and develop a random drug testing program in accordance with 46 CFR Part 16 Section 210 and 230. The

Contractor shall submit a random Drug Testing Plan to the COR no later than 30 calendar days after contract award(CDRL A047). Testing shall not interfere with training evolutions.

5.14.2. The Government identifies that all contractor services performed under this contract as essential contractor services in support of mission-essential functions (Defense Federal Acquisition Regulation Supplement 252.237-7023).

5.14.3. In the event of replacing assigned personnel, the Contractor shall promptly notify the COR of the proposed substitute clearly defining their experience and certifications, and any other information requested by the COR.

5.14.4. All proposed substitutions must be submitted, in writing, at least five calendar days in advance of the proposed substitution. The Contractor shall, prior to making any substitution permanent, demonstrate to the satisfaction of the COR that substitute personnel replacing Contractor personnel assigned to this contract meet or exceed the qualifications of the personnel they are replacing. The COR will notify the Contractor of the decision on proposed substitutions within 15 calendar days after receipt of all required information.

5.14.6. In the event the Government has any reason to be dissatisfied with the qualifications, conduct or performance of any person employed by the Contractor, the Contracting Officer will provide particulars to the Contractor who shall promptly investigate and take the appropriate corrective action, including but not limited to making a change in personnel. The Contractor shall provide the Contracting Officer and COR with written information detailing the action taken and the basis for such action.

5.14.7. Personnel Staffing Plan. The Contractor shall develop a contingency plan adequate to ensure that there will be no interruption of operations and maintenance service due to labor disruption within the service provider's own labor force, e.g., personnel turnover, long-term absences. A long-term absence is longer than two-weeks. The plan must also address substitution of personnel when qualified/trained personnel are not available due to leave, sickness, death, etc. Submission of the plan is due to Contracting Officer upon submission of proposal(CDRL A048).

5.14.8. Contract Data Requirements List. Table 6 summarizes the list of plans and reports required by this PWS.

Table 6: Contract Data Requirements List

Data Item	Requirement	Paragraph	Due
A001	Inclement weather plan and work contingency plan	1.5.3.1	Within 5 calendar days after contract award.
A002	Quality Control Plan	1.7.1	Within 10 days after contract award and within 5 days of proposed changes
A003	Corrective Action Plan	1.7.2	As Directed by the Contracting Officer
A004	AT Level 1 training completion	1.9.1	Within 5 days after contract start date
A005	SAAR-N Form	1.9.4	30 days prior to Contractor start date
A006	Name of Contractor's Security Representative -	1.9.4	Within 3 days after contract award
A007	Contractor information for CAC issuance -	1.10.1.1	When requested by the COR
A008	Physical security checklist/log -	1.10.2	Monthly
A009	Safety Plan -	1.11	Within 10 days after contract award
A010	Environmental and OSHA conflicts with contract -	1.11.2	When identified
A011	Mishap reporting	1.11.3	As required
A012	Mishap requiring emergency medical treatment reporting	1.11.4	Within 30 minutes of incident
A013	Personnel safety	1.11.5	Once corrective action has been completed
A014	Motor vehicle operators licensing	1.12.1	Within 30 days after contract award
A015	List of issued ID cards -	1.12.4	Prior to contract start date and updated as required
A016	Organizational Conflict of Interest Plan -	1.12.5.a	As required
A017	Proof of the Contractor's employee's education, experience, and qualifications -	1.12.9	Within 10 days of contract award or five days prior to the start of new hire
A018	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks, (3-M) 303 Work Center Supervisor Fundamental and Tasks	1.12.9.2.b.	Within 30 days of reporting to the command
A019	Qualify as YDT Craftmaster	1.12.9.3.b.	Within 30 days of reporting to the command
A020	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks	1.12.9.4.b.	Within 30 days of reporting to the command
A021	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks	1.12.9.5.b	Within 30 days of reporting to the command
A022	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks	1.12.9.6.b.	Within 30 days of reporting to the command
A023	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks	1.12.9.7.b	Within 30 days of reporting to the command
A024	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks, (3-M) 303 Work Center Supervisor Fundamental and Tasks	1.12.9.8.b.	Within 30 days of reporting to the command
A025	Complete command coxswain qualification and pass the Third and	1.12.9.8.c.	Within 30 days of reporting to the command

	Second Class Swim test or present an STCW A-VI/1 Certificate of Completion		
A026	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks	1.12.9.9.b.	Within 30 days of reporting to the command
A027	Familiarize with SKED, Navy Material Maintenance Management (3-M) 301 Maintenance Person Fundamental and Tasks	1.12.9.10.b.	Within 30 days of reporting to the command
A028	Complete command coxswain qualification and pass the Third and Second Class Swim test or present an STCW A-VI/1 Certificate of Completion	1.12.9.10.c.	Within 30 days of reporting to the command
A029	Provide certification and qualification requirements for personnel whose task involves the use of government material handling equipment(MHE).	1.12.9.11.e.	Within 10 days of reporting to the command
A030	Provide a current physical exam and qualification for personnel whose task involves the use of government cranes	1.12.9.12.d.	Within 30 days of reporting to the command
A031	Name of PM	1.13.a.(1)	Within 5 days after contract award
A032	Travel assessment worksheet -	1.14.	At least 2 weeks prior to projected travel date
A033	Provide a comprehensive phase out plan to COR	1.18.2.1.	Within 30 days prior to contract expiration
A034	Develop equipment check out/in procedure for the Property Control System	3.6.1.	Within 30 days after contract award
A035	Conduct inventory of the government furnished equipment(GFE)	3.6.2.	Within two weeks of the start of the contract
A036	Conduct annual (GFE) inventory	3.6.3.	Annually in April
A037	Conduct close out (GGE) inventory	3.6.4.	Within 10 days of the contract end
A038	Notify craft officer and COR in the event of a HAZMAT spill	5.1.6.	Immediately and submit detailed report within 24 hours following incident
A039	Submit Utilization Expense Report	5.1.7.	Monthly
A040	Notify craft officer fuel status	5.2.5.	Event that fuel drops below 50%
A041	Monthly invoice	5.5.5.4.4.	No later than the 5th day of every month
A042	Develop training plan	5.6.6.	Within 30 days after contract award
A043	Submit a monthly training report	5.6.6.	Monthly
A044	Develop a maintenance plan	5.8.1.	Within 30 days after contract award
A045	Submit operations and maintenance report	5.8.9.	Monthly
A046	Submit fuel, oil, and water report	5.8.10.	Monthly
A047	Submit a drug testing plan	5.14.1.	Within 30 days after contract award
A048	Submit personnel staffing plan	5.14.7.	Upon submission of proposal

5.15. Inspection Requirements. The Contractor shall provide quality services and/or products IAW this contract.

5.15.1. When the Contractor's performance is unsatisfactory; a Contract Deficiency Report (CDR) shall be issued. If a CDR has to be issued, the Contractor shall reply in writing, giving

the reason for the unsatisfactory condition, and what corrective action has been taken; and procedures to prevent recurrence.

PART 6

APPLICABLE PUBLICATIONS AND FORMS

6. Applicable Publications (Current Editions)

6.1. The Contractor (to include Subcontractors) must abide by all applicable regulations, publications, manuals, and local policies and procedures.

- a. 29 CFR 1910, Occupational Health and Safety
- b. 32 CFR 147.24, The National Agency
- c. 41 CFR 102, Federal Management Regulation (FMR)
- d. 46 CFR 11, Shipping
- e. 46 CFR Part 16 Section 210 & 230, Drug Testing
- f. DoW 5200.08-R, Physical Security Program
- g. DoW 5500.7-R Joint Ethics Regulations (JER)
- h. DoWI 8500.01, Cybersecurity
- i. Florida Administrative Code 64J-1.013, Drivers (i.e., emergency vehicle (ambulance))
- j. Florida Statue Title XXIX, Chapter 401, Part III, 401.281, Drivers (medical transportation)
- k. NAVFAC P-307, Crane Inspection and Certification
- l. NAVSEAINST 4790.8C, with CH-1, Ship's Maintenance and Material Management (3-M) Manual
- m. NAVSEA OP 2165 Volume I, Navy Transportation Safety Handbook
- n. NAVSUP P-485 Vol 1, 2, &3, Naval Supply Procedures
- o. NAVSUP P-723, Navy Inventory Integrity Procedures
- p. NETCINST 1500.13F, NETC High and Moderate-Risk Safety Program
- q. NSTM 583, Boats and Small Craft
- r. NSTM 589, Cranes
- s. OPNAVINST 5090.1, Environmental Readiness Program
- t. OPNAVINST 5100.23H, Safety and Occupational Health Program
- u. OPNAVINST 5102.1E Navy Safety Investigation and Reporting Program Manual
- v. OPNAVINST 5530.14E CH-3, Navy Physical Security and Law Enforcement Program
- w. SECNAVINST 5510.30C, Navy Personnel Security Program

6.2. Forms. Mandatory records and report forms are listed below.

- a. DD254 – Department of Defense Contract Security Classification Specification, available at <http://www.dtic.mil/dtic/pdf/formsNguides/dd0254.pdf>
- b. FRCSE 5500/17 – Visit And Access Request, available at https://navalforms.documentservices.dla.mil/formsDir/_FRCSE_5500_17_8791.pdf
- c. OPNAV Form 8020/6 - Medical Examiner's Certificate (Handler Only), Government provided.

PART 7
ATTACHMENT/TECHNICAL EXHIBIT LISTING

Attachment 1:
Performance Requirements Summary

Performance Requirements	Performance Element	Method of Surveillance	Frequency	Acceptable Quality Level	Remedies
Ensure Vessel Readiness to meet Training Schedule Requirements at All Times (paragraph 5.1.3)	Maintain Vessel Readiness	Operations and Maintenance Report	Continuously; or as needed for Repair Actions	100%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.
Maintain all Vessels IAW Current Safety Requirements (paragraph 1.4)	Safety Inspection of Vessels	Visual Inspection	Continuously; or as needed for Repair Actions	100%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.
Ensure All Training Equipment are Ready to meet Training Schedule Requirements at All Times (paragraph 5.2.1)	Maintain Equipment, Supplies, Readiness	Operations and Maintenance Report	Continuously; or as needed for Repair Actions	100%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.
Complete All Required Planned Maintenance Within Periodicity (paragraph 5.2.2)	Conduct Planned Maintenance	Planned Maintenance Records and Navy 3-M and NSTM 583 periodicities	Periodically; or as needed for Repair Actions	90%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.
Complete All Corrective Maintenance as Needed in an Expeditious Manner IAW original manufacturer's specifications (paragraph 5.2.2)	Conduct Corrective Maintenance	Corrective Maintenance Records Review/Spot Checks	Periodically; or as needed for Repair Actions	95%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.

Conduct watercraft and diving operations IAW U.S. Navy training policy and U.S. Coast Guard rules and regulations (paragraph 5.3.1, 5.4.3)	Conduct Safe Watercraft Operations	Mishap and Near-Mishap Reports	Continuously	<3 reported Near-Mishaps or <2 reported Mishaps	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.
Maintain Tracking, Inventory and Accountability for all government furnished property (paragraph 3.6)	Government Furnished Property	COR Spot Checks; Annual Inventories	Continuously	100%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.
Maintain Tracking Records for Receipt, Storage, Usage and Disposal of All Hazardous Material (paragraph 1.11.2)	Hazardous Material Accountability	Technical Exhibit Inventory Review/Visual Inspection	Continuously; or as needed for Repair Actions	100%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.
Under DFARS PGI 222.1703 and in accordance with FAR clause 52.222-50, Combating Trafficking in Persons – The contractor will maintain compliance	Combating Trafficking in Persons	Records Review/Visual Inspection	Continuously; or as needed for Repair Actions	100%	Remedies in accordance with FAR 52.249, 52.219-16 & 42.1503.

Attachments:

Technical Exhibit 1:

NDSTC Inventory of Government Furnished Craft

Technical Exhibit 2:

NDSTC Inventory of Government Furnished Tools

Technical Exhibit 3:

NDSTC Inventory of Yellow Gear (Pumps and Hydraulic Gear)

Technical Exhibit 4:

NDSTC Oil Analysis Program

Technical Exhibit 5:

Area Maps

Technical Exhibit 6:

Consumables List

Technical Exhibit 7:

Destructive Weather Instructions

Part 8

INSURANCE REQUIREMENTS

8.1 Liability.

(a) Workers' compensation and employer's liability. Contractors are required to comply with applicable Federal and State workers' compensation and occupational disease statutes. If occupational diseases are not compensable under those statutes, they shall be covered under the employer's liability section of the insurance policy, except when contract operations are so commingled with a contractor's commercial operations that it would not be practical to require this coverage. Employer's liability coverage of at least \$100,000 shall be required, except in States with exclusive or monopolistic funds that do not permit workers' compensation to be written by private carriers. (See 28.305(c) for treatment of contracts subject to the Defense Base Act.)

(b) General liability.

(1) The contracting officer shall require bodily injury liability insurance coverage written on the comprehensive form of policy of at least \$500,000 per occurrence.

(2) Property damage liability insurance shall be required only in special circumstances as determined by the agency.

(c) Automobile liability. The contracting officer shall require automobile liability insurance written on the comprehensive form of policy. The policy shall provide for bodily injury and property damage liability covering the operation of all automobiles used in connection with performing the contract. Policies covering automobiles operated in the United States shall provide coverage of at least \$200,000 per person and \$500,000 per occurrence for bodily injury and \$20,000 per occurrence for property damage. The amount of liability coverage on other policies shall be commensurate with any legal requirements of the locality and sufficient to meet normal and customary claims.

(d) Aircraft public and passenger liability. When aircraft are used in connection with performing the contract, the contracting officer shall require aircraft public and passenger liability insurance. Coverage shall be at least \$200,000 per person and \$500,000 per occurrence for bodily injury, other than passenger liability, and \$200,000 per occurrence for property damage. Coverage for passenger liability bodily injury shall be at least \$200,000 multiplied by the number of seats or passengers, whichever is greater.

(e) Vessel liability. When contract performance involves use of vessels, the contracting officer shall require, as determined by the agency, vessel collision liability and protection and indemnity liability insurance.